

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA**

Case No. 21-cv-21940-BLOOM/Otazo-Reyes

NEIMA BENAVIDES, as Personal
Representative of the Estate of Naibel
Benavides Leon, deceased,
Plaintiff,

v.

TESLA, INC., a/k/a Tesla Florida, Inc.,
Defendant.

Case No. 22-22607-KMM

DILLON ANGULO,
Plaintiff,

v.

TESLA, INC. a/k/a Tesla Florida, Inc.,
Defendant.

**PLAINTIFFS' CONSOLIDATED AND AMENDED
COMPLAINT AND DEMAND FOR JURY TRIAL**

Plaintiffs, NEIMA BENAVIDES, as Personal Representative of the Estate of Naibel Benavides Leon, deceased, and DILLON ANGULO, by and through their undersigned counsel (collectively referred to herein as "Plaintiffs"), file this their Consolidated and Amended Complaint against Defendant, TESLA, INC. a/k/a TESLA FLORIDA, INC. (hereinafter called "Tesla"), and allege and state as follows:

JURISDICTION, VENUE AND PARTIES

1. Jurisdiction is proper in this Court pursuant to 28 U.S.C. §1332 because this action is between citizens of different states and the amount in controversy, exclusive of interest, attorneys' fees and costs, exceeds \$75,000.00.
2. Plaintiff Dillon Angulo ("Dillon") is a resident of and is domiciled in the State of Florida.
3. Neima Benavides is the duly appointed personal representative of the Estate of Naibel Benavides Leon. As personal representative of the Estate, the Plaintiff, Neima Benavides, has standing to and otherwise is duty bound to bring this wrongful death action pursuant to Florida Statute §768.16 *et seq.*
4. At the time of her death, Naibel Benavides Leon ("Naibel") was 20 years old, was not married, and had no children.
5. Naibel Benavides Leon is survived by her natural parents, Lilia Marilyn Leon Jimenez and Guillermo Benavides, who are survivors under the Florida Wrongful Death Act.
6. Lilia Marilyn Leon Jimenez is a resident of Miami Dade County.
7. The above-described parties will hereinafter be referred to collectively as "Plaintiffs".
8. At all material times, Defendant, Tesla, Inc. a/k/a Tesla Florida, Inc. (hereinafter "Tesla"), is and was a foreign corporation licensed and authorized to do business in the State of Florida.
9. At all times hereinafter mentioned and at the time of the incident complained of, Tesla had an office for the transaction of its customary business in Miami-Dade County, Florida, had agents and other representatives in Miami-Dade County, and was actually doing business in Miami-Dade County, Florida, by virtue of its shipping to and sale of automobiles in Miami-Dade County, Florida.

10. At all times hereinafter and at the time of the incident complained of, Tesla was in the business of designing, testing, inspecting, manufacturing, distributing, selling, maintaining, repairing and otherwise placing into the stream of commerce, and causing same to come into the State of Florida, certain automobiles, including a certain specific automobile designated and described as a 2019 Tesla Model S, VIN: 5YJSA1E24KF302997 (hereinafter described as the “Vehicle”).

THE INCIDENT

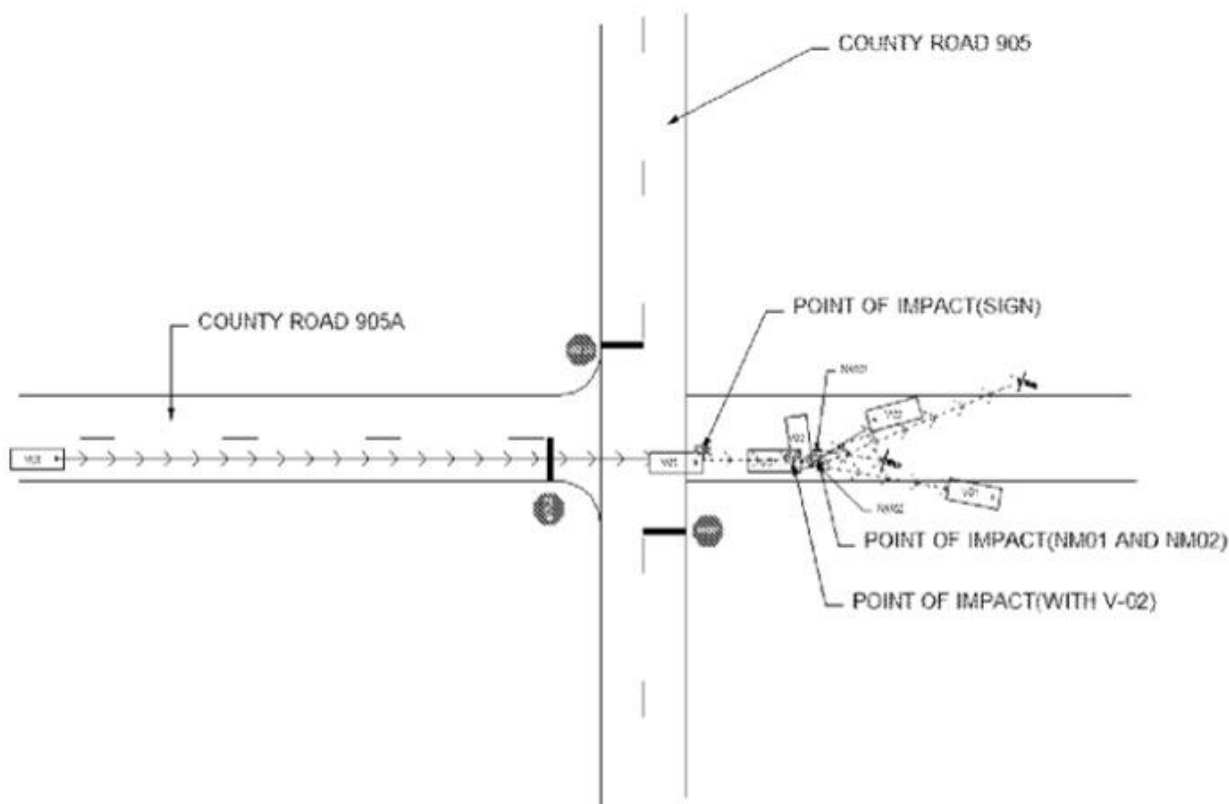
11. At around 9:25 PM on April 25, 2019, George McGee rode in his 2019 Tesla Model S, VIN: 5YJSA1E24KF302997 (the “Vehicle”), east on County Road 905A, also called Card Sound Road, approaching the 3-way T-intersection with County Road 905 near the town of Key Largo, Monroe County, Florida.
12. Mr. McGee’s Tesla came equipped with automated driving features, one of which Tesla called “Autopilot”, that could navigate the vehicle without driver input.
13. As he had on many other occasions, Mr. McGee relied on the Autopilot and other automated features to safely drive him home.
14. As he approached the T-intersection, Mr. McGee engaged in a phone call, and, as he told the police at the scene, he dropped the phone and bent down to retrieve it from the floorboard.
15. Meanwhile, Dillon Angulo, with his passenger Naibel Benavides Leon, had parked his mother’s Chevrolet Tahoe on the east shoulder of County Road 905, perpendicular to and directly across from eastbound Card Sound Road.
16. Dillon and Naibel stood next to the Tahoe as Mr. McGee approached the intersection.

17. Mr. McGee's Tesla failed to detect the parked Tahoe directly in its path and drove into it at high speed.
18. The impact threw Naibel about 75 feet, killing her, and caused severe, permanent injuries to Dillon.

Date of Crash 25/Apr/2019 09:25 PM	Date of Report 25/Apr/2019 09:25 PM	Invest. Agency Report Number FHPE19OFF022748	HSMV Crash Report Number 87219182
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NOT TO SCALE



The scene as depicted in the Florida Highway Patrol Crash Report.



George McGee's Tesla.



The Tahoe.

BACKGROUND

The Autopilot System

19. The McGee Tesla Model S had an Autopilot system that was still in Beta, meaning it was not fully tested for safety, and, further, the system was not designed to be used on roadways with cross-traffic or intersections. Nevertheless, Tesla programed the system so that it could be operated in such areas.
20. Tesla programed Autopilot to allow it to be used on roadways that Tesla knew were not suitable for its use and knew this would result in collisions causing injuries and deaths of innocent people who did not choose to be a part of Tesla's experiments, such as Plaintiffs.
21. Tesla has known for years of other fatal collisions when Autopilot was being used outside of the area for which it was designed. Specifically, Tesla knew as of May 2016, almost three years before this crash, that Tesla drivers would overestimate Autopilot's capabilities, resulting in fatal crashes, yet Tesla did little to effectively guard against this hazard.
22. Despite knowing of Autopilot's deficiencies, Tesla advertised Autopilot in a way that greatly exaggerated its capabilities and hid its deficiencies. Rather than taking appropriate steps to ensure the safety of its customers and others, Tesla and its CEO, Elon Musk, made the intentional decision to continue encouraging Tesla drivers to over-rely on its Autopilot system. Tesla chose to continue profiting from the sales of their defective vehicles and software systems rather than heed warnings from government agencies, experts, and other car companies.
23. The National Highway Traffic Safety Administration ("NHTSA") has now provided unequivocal information defining the nature and scope of Autopilot's defectiveness. However, Tesla's response to NHTSA's clear findings describing the defect in Tesla's

Autopilot system and the danger posed by this defect has so far demonstrated little willingness on Tesla's part to honor those findings or even provide the safety technology it promised in responding to NHTSA's findings.

Autopilot Recall December 12, 2023, and Tesla's Response

24. On December 12, 2023, NHTSA submitted its Part 573 Safety Recall Report number 23V-838, recalling virtually all Tesla vehicles made since 2012, potentially 2,031,220 vehicles. [Exhibit 1]
25. This recall resulted from investigations NHTSA conducted over the past few years, beginning with a Preliminary Evaluation (PE21-020) investigation into Tesla's Autopilot on August 13, 2021, based on eleven incidents involving stationary first-responder vehicles and Tesla vehicles that were operating with Autopilot's Autosteer function engaged. [Exhibit 3]
26. On June 8, 2022, NHTSA upgraded PE21-020 to Engineering Analysis (EA) EA22-002, studying the potential for driver misuse when Autosteer is engaged. [Exhibit 4]
27. On December 5, 2023, Tesla determined to voluntarily administer a recall and provide an over-the-air software update to address NHTSA's concerns. [Exhibit 1]
28. NHTSA described the Autopilot defect in part, saying, "In certain circumstances when Autosteer is engaged, the prominence and scope of the feature's controls may not be sufficient to prevent driver misuse of the SAE Level 2 advanced driver-assistance feature." [Id.]
29. NHTSA described the safety risk as follows: "In certain circumstances when Autosteer is engaged, if a driver misuses the SAE Level 2 advanced driver-assistance feature such that they fail to maintain continuous and sustained responsibility for vehicle operation and are

unprepared to intervene, fail to recognize when the feature is canceled or not engaged, and/or fail to recognize when the feature is operating in situations where its functionality may be limited, there may be an increased risk of a collision.” [Id.]

30. Despite the NHTSA recall, Tesla continues to allow drivers to use its Autopilot system in places where it is not designed to operate safely with insufficient protection from foreseeable driver misuse. Tesla’s recall only involved an over-the-air software update that provides additional warnings when the Autopilot system senses driver inattention.¹ However, even if the update adds visual and audible warnings, this fix is too little, too late. Tesla has known since at least September of 2016 that its driver warning system was grossly inadequate.
31. In his press conference on September 11, 2016, Tesla CEO Elon Musk stated that some people get comfortable using Autopilot and “so we will see half a dozen or more, sometimes as many as 10 warnings in the space of an hour continuously ignored by the driver. So, we really want to avoid that situation.”² Tesla’s response to NHTSA’s findings leaves much doubt as to whether Tesla has or will ever effectively address Autopilot’s defects.
32. Despite claims that Tesla has fully complied with NHTSA’s recall, early indications are that Tesla’s software updates have done little, if anything, to address the regulator’s concerns. Testers at Consumer Reports “did not notice any differences when activating or using Autopilot’s flagship feature, Autosteer, outside of the controlled-access highways

¹ Faiz Siddiqui and Trisha Thadani, *Recalling almost every Tesla in America won’t fix safety issues, experts say*, THE WASHINGTON POST, December 16, 2023, <https://www.washingtonpost.com/technology/2023/12/16/tesla-autopilot-recall/>

² Elon Musk Press Conference on September 11, 2016, at approximately time 00:14:40-00:15:04

where Tesla says the software is designed to be used.”³ Testers also discovered “it’s still possible to cover the cabin camera while using Autopilot, meaning drivers can neutralize one of the two main ways the car monitors if they are paying attention to the road.”⁴

33. Further, despite NHTSA’s findings, Tesla has evidently not agreed to restrict, or “geofence”, Autopilot and Autosteer to the kind of roads on which the technology was designed to operate.⁵ Although Tesla had been notified of its need to guard against misuse of its Autopilot system years before this incident,⁶ and despite NHTSA’s recent recall, Tesla steadfastly refuses to restrict operation of Autopilot and Autosteer to the areas in which this technology was designed to operate, a remedy that would further help correct the dangerously defective system.⁷
34. Before NHTSA’s recall, Plaintiffs knew of Autopilot’s defects and knew of Tesla’s failure to correct the defects when it knew or should have known of them. However, NHTSA’s findings and, particularly, Tesla’s response provide compelling new, previously undiscoverable evidence of Tesla’s gross indifference to safety and its willingness to intentionally mislead the public and its customers.

³ Sean O’Kane, *Consumer Reports says Tesla’s Autopilot recall fix is ‘insufficient’*, TECHCRUNCH, December 20, 2023, <https://techcrunch.com/2023/12/20/tesla-autopilot-recall-consumer-reports/>

⁴ *Id.*

⁵ *Id.*

⁶ Rachel Lerman, Faiz Siddiqui, Aaron Gregg and Trisha Thadani, *How Tesla Autopilot got grounded*, THE WASHINGTON POST, December 16, 2023, <https://www.washingtonpost.com/business/2023/12/16/tesla-autopilot-recall-timeline/>

⁷ Faiz Siddiqui and Trisha Thadani, *Recalling almost every Tesla in America won’t fix safety issues, experts say*, THE WASHINGTON POST, December 16, 2023, <https://www.washingtonpost.com/technology/2023/12/16/tesla-autopilot-recall/>

Tesla's History of Promoting Overreliance

35. During an October 14, 2015, Tesla Press Conference for the Autopilot v7.0 Software, Tesla CEO Elon Musk stated: “The forward-facing camera is able to determine where the lanes are, where the cars are ahead of it, and it’s also able to read signs. It’s been able to read speed signs for a while, for example, but it’s able to read pretty much any sign. Then that’s combined with the forward radar. The radar is very good at detecting fast moving large objects, and it can actually see through fog, rain, snow, and dust. So, the forward radar gives the car superhuman sensors. It can see through things that are close to the car.”⁸
36. Little of this statement was remotely true. No version of Autopilot has ever been able to read “pretty much any sign”. This statement, made over three years before this incident, clearly implied that this “ever-improving” system would recognize a stop sign, flashing lights, a barrier, and a large SUV. Yet, Tesla knew its Autopilot system could do no such thing.
37. The fact that NHTSA has called for more prominence and scope of Autopilot’s controls to prevent misuse over eight years after these remarks speaks volumes about Tesla’s unwillingness to be clear and truthful about Autopilot’s capabilities. Tesla’s continued flagrant disregard of NHTSA’s recall screams its gross indifference to safety.
38. Other statements over the years that encouraged overreliance on Autopilot also reinforced the defect pointed out by NHTSA and further underscore Tesla’s continued indifference to correcting this defect.

⁸ Tesla Press Conference for the Autopilot v7.0 Software, at approximately time 00:03:46 to 00:04:29.

39. Two and a half years before the subject incident, on October 19, 2016, Tesla CEO Elon Musk stated: “The basic news is that all Tesla vehicles exiting the factory have the hardware necessary for Level 5 Autonomy.”⁹
40. On September 11, 2016, Tesla CEO Elon Musk stated: “The exciting thing is that even if the vision system doesn’t recognize what the object is because it could be a very strange-looking vehicle, it could be a multi-car pileup, it could be a truck crossing the road, it really could be anything – an alien spaceship, a pile of junk metal that fell off the back of a truck. It actually doesn’t matter what the object is, it just knows that there’s something dense that it is going to hit – and it should not hit that.”¹⁰
41. As part of an October 2016 event, Tesla posted a video, set to the Rolling Stones’ “Paint It Black”, demonstrating what it purports to be the self-driving capabilities of its Autopilot system. The video opens with the caption: “The person in the driver’s seat is only there for legal reasons. He is not doing anything. The car is driving itself.”¹¹
42. Six years after posting this video, which still contains no disclaimer that the video does not depict the capabilities of any vehicle Tesla has ever sold, Tesla’s head of Autopilot testified that the video did not represent the true capabilities of the car, that the video was staged, and that the vehicle used in the video crashed into a fence in one of the video outtakes.
43. Further, Tesla’s CEO, Elon Musk, stated in 2016, “Model S and Model X, at this point, can drive autonomously with greater safety than a person. Right now.”¹²

⁹ See: Elon Musk, Oct. 19, 2016 [time 00:00 - 00:13] https://www.youtube.com/watch?v=-vjGEEF_p5E.

¹⁰ September 11, 2016, Tesla Press Conference, at approximately time 00:03:07-00:03:50.

¹¹ See, <https://www.tesla.com/autopilot> (last viewed December 20, 2023).

¹² Elon Musk [1:18:48-1:19:34] Elon Musk | Full interview | Code Conference 2016.

44. Musk and Tesla blurred any distinction between the “Autopilot” features and the “full-self-driving” capabilities, exaggerating both far beyond their actual capabilities. In interviews with reporters that day (October 19, 2016), Tesla’s CEO Elon Musk predicted, “we will be able to demonstrate a demonstration drive of our full autonomy all the way from LA to New York. So basically, from home in LA to let’s say dropping you off in Times Square, NY, and then having the car parking itself by the end of next year (2017) without the need for a single touch including the charger.”¹³
45. Further, Tesla’s CEO, Elon Musk, stated in 2016, “In dense traffic situations, autonomy is really easy because you could just maintain a set distance from various cars, it’s actually quite easy . . . Model S and Model X, at this point, can drive autonomously with greater safety than a person. Right now.”¹⁴
46. Then in 2018, Musk announced that within months, “full-self-driving” features would be added to the vehicles through an online update in the vehicle software.¹⁵
47. On April 12, 2019, Musk claimed, “I’d be shocked if it’s not next year, at the latest, that having a human intervene will decrease safety.”¹⁶
48. Tesla’s descriptions of its various autonomous features have consistently evinced Tesla’s *desire* is for its customers to *believe* that all Tesla vehicles have or will imminently gain autonomous systems enabling Tesla vehicles to operate without human involvement.

¹³ *In a conference call with reporters: Elon Musk Autopilot 2.0 Conference Call Transcript*, XAUTOWORLD Oct. 19, 2016, <http://www.xautoworld.com/Tesla/transcript-elon-musk-autopilot-2-conference-call/> (last accessed Aug. 23, 2021).

¹⁴ Elon Musk [1:18:48-1:19:34] Elon Musk | Full interview | Code Conference 2016.

¹⁵ Fred Lambert, *Tesla’s version 9 software update is coming in August with first ‘full self-driving features’, says Elon Musk*, ELECTREK, June 10, 2018, <https://electrek.co/2018/06/10/tesla-version-9-software-update-fully-self-driving-features-elon-musk/>.

¹⁶ Lex Fridman, Interview: *Elon Musk: Tesla Autopilot* | Lex Fridman Podcast #18, at 21:27–24:26 Apr. 12, 2019, <https://www.youtube.com/watch?v=dEv99vxKjVI&t=281s>.

49. Tesla deliberately blurs the distinction between whether its automation system is merely a “driver assist” system or a fully autonomous system that does not require the driver’s constant attention.¹⁷
50. One reason for Tesla’s ambiguity as to the level of autonomy available in its vehicles is that without substantially more rigorous testing and development, Tesla cannot openly sell a vehicle that does not require the driver’s constant attention.¹⁸
51. Thus, Tesla has sought to convince its prospective and previous customers that Tesla vehicles have or will soon have the ability to drive themselves, while simultaneously telling regulators Tesla only sells vehicles that require constant driver attention (with the same driver-assist features used by various other automakers).¹⁹
52. According to Bryant Walker Smith, an associate professor in the Schools of Law and Engineering at the University of South Carolina, this raises the question, “If we can’t trust Tesla when they say their vehicles are full self-driving, how can we trust the company when it says they are safe?”²⁰

Tesla Uses Its Untrained Customers to Train Autopilot

53. One of the key differences between Tesla’s development of its automated features and others in the automotive industry is Tesla’s use of drivers in the field, **its customers**, to “train” the computer system to master the tasks necessary to safely negotiate the complex, largely unpredictable nature of driving a car in real-world traffic.²¹

¹⁷ William H. Widen and Philip Koopman, *Do Tesla FSD Beta Releases Violate Public Road Testing Regulations?*, JURIST – Academic Commentary, Sept. 27, 2021, <https://www.jurist.org/commentary/2021/09/william-widen-philip-koopman-autonomous-vehicles/>.

¹⁸ *Id.*

¹⁹ *Id.*

²⁰ *Id.*

²¹ *The state of self-driving cars*, CBS GOOD MORNING, Feb. 19, 2022 <https://www.cbsnews.com/video/the-state-of-self-driving-cars/#x>.

54. Tesla's Autopilot system is still in "beta", that is, it is still in the process of being tested. The Autopilot system was not and never has been considered by Tesla or anyone else to be a finished product. Instead, Autopilot is being tested and developed by ordinary drivers in traffic situations and interacting with others, such as Dillon and Naibel, who have in no way consented to participating in Tesla's testing process.²²
55. The first fatality involving Autopilot occurred in May of 2016, nearly three years before this incident, and over seven years before this writing. Throughout that time Tesla has continued to use its untrained customers to beta-test its system and failed to take reasonable steps to effectively guard against misuse – misuse that is not only foreseeable but encouraged by Tesla.
56. Tesla is the only carmaker that beta-tests its Advanced Driver Assist System on the public.²³ This was true in 2016 and it remains true today. "Every other automaker – from BMW to Cadillac – flat-out refuses to beta-test driverless tech on the public."²⁴

Federal Agencies Have Repeatedly Called Attention to Tesla's False Advertising

57. Long before this tragic incident, advocates and federal agencies have repeatedly demanded the Federal Trade Commission act on Tesla's apparent false advertising of its automated driving systems.²⁵
58. In 2018, the Center for Auto Safety and Consumer Watchdog wrote to then-FTC Chairman Joseph Simons urging the FTC to investigate Tesla's deceptive and unfair practices in the

²² Elon Musk, *Tesla Autonomy Day 2019 - Full Self-Driving Autopilot - Complete Investor Conference Event*, at 2:13:18–2:13:32, Apr. 23, 2019, <https://www.youtube.com/watch?v=Ucp0TTmvqOE&t=4453s>.

²³ Nick Jaynes, *Tesla is the only carmaker beta testing 'autopilot' tech, and that's a problem*, MASHABLE, July 9, 2016 <https://mashable.com/article/tesla-beta-testing-autopilot-on-public>

²⁴ *Id.*

²⁵ See Exhibit 5, 18 August 2021 Letter from the United States Senate to The Honorable Lina Khan, Chair, Federal Trade Commission.

advertising and marketing of Autopilot after two fatal crashes.²⁶ They renewed their request to the FTC in 2019 after more fatal crashes.²⁷

59. The National Highway Traffic Safety Administration (NHTSA) sent Elon Musk a cease-and-desist letter in 2018 over his claims about Tesla vehicles' safety and asked the FTC to investigate the claims.²⁸
60. On August 13, 2021, NHTSA opened a formal investigation into Tesla's Autopilot feature after identifying eleven crashes with Autopilot engaged since 2018 that involved Tesla vehicles crashing at first responder sites.²⁹ As part of their investigation of first responder crashes, NHTSA requested Tesla to provide responses to various information requests³⁰ and Tesla has sought to conceal their responses from the public.³¹
61. Despite the NHTSA investigation and mounting questions about the safety of Tesla's autonomous driving software and marketing, Tesla announced in September 2021 it would be expanding the availability of its Full Self-Driving feature. In response to this announcement, National Transportation Safety Board (NTSB) chair, Jennifer Homendy, said in an interview with the Wall Street Journal, "basic safety issues have to be addressed before they're then expanding it to other city streets."³² Homendy called Tesla's decision

²⁶ See Exhibit 6, May 23, 2018, Letter from the Center for Auto Safety to Hon. Joseph Simons, Chair FTC.

²⁷ See Exhibit 7, July 25, 2019, Letter from the Center for Auto Safety to Hon. Joseph Simons, Chair FTC.

²⁸ See Exhibit 5 (citing Sean O'Kane, *Feds told Tesla to stop misleading the public about Model 3 safety*, VERGE, Aug. 7, 2019, <https://www.theverge.com/2019/8/7/20758349/Tesla-model-3-safety-misleading-ftc-national-highway-traffic-administration-elon-musk>).

²⁹ See attached Exhibit 8, National Highway Traffic Safety Administration [NHTSA] ODI Resume for Investigation number PE 21-020.

³⁰ See attached Exhibit 3, National Highway Traffic Safety Administration [NHTSA] Letter to Eddie Gates, Director, Field Quality, Tesla, Inc., August 31, 2021.

³¹ USDOT Memorandum dated October 22, 2021, PE-21-020 Public File.

³² Rebecca Elliott, *Elon Musk's Push to Expand Tesla's Driver Assistance to Cities Rankles a Top Safety Authority*, WALL ST. J. Sept. 19, 2021, https://www.wsj.com/articles/elon-musks-push-to-expand-teslas-driver-assistance-to-cities-rankles-a-top-safety-authority-11632043803?mod=hp_lead_pos3.

to call its system “Full Self-Driving” “misleading and irresponsible.”³³ Homendy pointed out that people pay more attention to marketing than to warnings buried in car manuals or on a company’s website.³⁴ According to Homendy, “[Tesla] has clearly misled numerous people to misuse and abuse technology.”³⁵

62. NHTSA also issued a Special Order Directed to Tesla, Inc., on October 12, 2021, ordering Tesla to produce various documents related to purported non-disclosure agreements between Tesla and its customers that prohibited or discouraged customers from sharing certain information relevant to the performance of Full Self-Driving.³⁶
63. Prior to the most recent recall involving all Tesla vehicles, NHTSA ordered Tesla to recall more than 362,000 U. S. vehicles to update its Full Self-Driving (FSD) beta software after U.S. regulators found the system did not adequately adhere to traffic safety laws and could cause crashes.³⁷
64. However, while this recall made international news, Tesla has been regularly sending out online “updates” of its automated features, as they did in late September 2021 when Tesla updated its vehicles’ software to improve the detection of emergency vehicle lights in low light situations.
65. Shortly thereafter, NHTSA formally reminded Tesla that “the Safety Act imposes an obligation on manufacturers of motor vehicles and motor vehicle equipment to initiate a recall by notifying NHTSA when they determine vehicles or equipment they produced

³³ *Id.*

³⁴ *Id.*

³⁵ *Id.*

³⁶ See attached Exhibit 11, National Highway Traffic Safety Administration [NHTSA] Letter & Special Order Directed to Tesla, Inc., to Bill Berry, Vice President, Legal, Tesla, Inc. (Oct. 12, 2021).

³⁷ See, e.g., David Shepardson, *Tesla Recalls 362,000 U.S. vehicles over Full Self-Driving software*, REUTERS, February 16, 2023 <https://www.reuters.com/business/autos-transportation/tesla-recalls-362000-us-vehicles-over-full-self-driving-software-2023-02-16/>.

contain defects related to motor vehicle safety or do not comply with an applicable motor vehicle safety standard.”³⁸

66. Given that Tesla has issued numerous updates to its autonomous driving systems over the last several years, any of these updates would more accurately be “recalls” if they were intended to make the vehicles safer. Many of Tesla’s relatively secret “updates” should have received the same international attention as the most recent one, and without that attention, Tesla has been spared the damage to its reputation and serious public and regulatory scrutiny many such recalls would necessarily have entailed.
67. Additionally, the California Department of Motor Vehicles accused Tesla of false advertising in its promotion of the company’s signature Autopilot and Full Self-Driving technologies, stating that Tesla had “made or disseminated statements that are untrue or misleading, and not based on facts.”³⁹
68. The problems with partially automated driver assist systems, such as Tesla’s Autopilot, have been known to the automotive industry for decades.⁴⁰ Drivers tend to “drift off” and lose what experts call “situational” or “contextual” awareness.⁴¹ Reaction time, especially

³⁸ See Exhibit 9, Letter from Gregory Magno, Chief Vehicle Defects Division – D Office of Defects Investigation, NHTSA, to Eddie Gates, Director, Field Quality, Tesla, Inc., (October 12, 2021) INIM-PE21020-85573P.pdf

³⁹ Russ Mitchell, *California DMV accuses Tesla of falsely advertising Autopilot and Full Self-Driving features*, Los Angeles Times, August 5, 2022. <https://www.latimes.com/business/story/2022-08-05/dmv-false-advertising-tesla>.

⁴⁰ Endsley, M. R., & Kaber, D. B. (1999), *Level of automation effects on performance, situation awareness and workload in a dynamic control task*, 42 *ERGONOMICS*, 462–92; Kaber, D. B., & Endsley, M. R. (1997) *Out-of-the-loop performance problems and the use of intermediate levels of automation for improved control system functioning and safety*, 16 *PROCESS SAFETY PROGRESS*, 126–131; Stanton, N. A., Young, M., & McCaulder, B. (1997) *Drive-by- wire: The case of driver workload and reclaiming control with adaptive cruise control*, 27 *SAFETY SCIENCE*, 149–159; Stanton, N. A., & Young, M. S. (2005) *Driver behaviour with adaptive cruise control*, 48 *ERGONOMICS*, 1294–1313; Young, M. S., & Stanton, N. A. (2002) *Malleable attentional resources theory: A new explanation for the effects of mental underload on performance*, 44 *HUMAN FACTORS*, 365–375.

⁴¹ *Id.*

in emergencies, substantially increases when driver assist features are in use.⁴² Reaction times rise further as the level of automation increases.⁴³ Trust in the automated system slows reaction times, and this trust is reinforced when automation performs *relatively* well,⁴⁴ as it apparently did for Mr. McGee.⁴⁵

69. This trust, meticulously cultivated by Tesla and its spokespeople, creates dire risks when the automated system suddenly fails without warning.⁴⁶

The Problem with Partial Automation

70. The conundrum created by a partially automated system was extensively researched before Tesla ever made a car.⁴⁷ One study found that more than a third of drivers failed to regain control of their vehicle following an automation failure while using advanced driver assist technology.⁴⁸

⁴² See, e.g., *Cruise Control and Speed Limiters Impact Driver Vigilance*, VINCI AUTOROUTES FOUND. (July 12, 2013); Young, M. S., & Stanton, N. A., *Back to the future: Brake reaction times for manual and automated vehicles*, 50 *ERGONOMICS*, 46–58 (2007).

⁴³ Eriksson, A., & Stanton, N. A., *Takeover Time in Highly Automated Vehicles: Noncritical Transitions to and From Manual Control*, *HUMAN FACTORS*, June 2017, at 689–90.

⁴⁴ Morando, Gershon, Mehler, and Reimer, *A model for naturalistic glance behavior around Tesla Autopilot disengagements*, *ELSEVIER, ACCIDENT ANALYSIS & PREVENTION*, Volume 161, Oct. 2021, 106384, <https://www.sciencedirect.com/science/article/pii/S0001457521003791?via%3Dihub#>.

⁴⁵ See Exhibit 10, McGee Depo [175:20-180:3].

⁴⁶ Morando, et al, *supra*. At 690.

⁴⁷ *Id.* (citing Desmond, P. A., Hancock, P. A., & Monette, J. L. *Fatigue and automation-induced impairments in simulated driving performance*, *HUMAN PERFORMANCE* (1998); *User Information, and Highway Design*, 1628, 8–14; Molloy, R., & Parasuraman, R. (1996) *Monitoring an automated system for a single failure: Vigilance and task complexity effects*, 38 *HUMAN FACTORS*, 311–22; Stanton, N. A., Young, M., & McCaulder, B., *Drive-by-wire: The case of driver workload and reclaiming control with adaptive cruise control*, 27 *SAFETY SCI.*, at 149–159 (1997); Stanton, N. A., Young, M. S., Walker, G. H., Turner, H., & Randle, S., *Automating the driver's control tasks*, 5 *INT'L J. COGNITIVE ERGONOMICS*, 221–36 (2001); Young, M. S., & Stanton, N. A., *supra*.

⁴⁸ Eriksson, A., & Stanton, N. A., *supra*.

71. A driver who is driving manually without any automation must first see and recognize a sudden emergency.⁴⁹ This necessarily happens before the driver can begin any appropriate response to avoid the hazard.⁵⁰
72. Once the driver recognizes the potential hazard, the driver must decide the best action to take.⁵¹ This might involve multiple choices, such as whether to brake or accelerate, or whether to steer right or left, or even to do nothing at all.⁵²
73. This process takes time and is in addition to the time it takes for the vehicle to respond once the driver decides which action to take and begins taking it.⁵³ Between the moment when the emergency registers in the driver's consciousness and when the driver reacts, the vehicle has continued on its path toward the hazard.⁵⁴ As the time it takes for a driver to notice and react to a hazard increases, the likelihood that the driver will fail to avoid or minimize the danger also increases.⁵⁵
74. This reaction time for a traditional manual system increases once an automated system becomes involved.⁵⁶ Drivers using basic SAE Level 1 assistance have longer brake reaction times than those driving without any automation.⁵⁷ These reaction times increase further for drivers with more advanced SAE Level 2 technology.⁵⁸ This additional delay can be

⁴⁹ Zhang, Winter, Varotto, Happee, & Martens, *Determinants of take-over time from automated driving: A meta-analysis of 129 studies*, ELSEVIER, Transportation Research Part F, 285–307, 286 (2019).

⁵⁰ *Id.*

⁵¹ *Id.*

⁵² *Id.*

⁵³ *Id.*

⁵⁴ *Id.*

⁵⁵ *Id.* at 298.

⁵⁶ *Id.*; see also Young, M. S., & Stanton, N. A., *supra*, at 46–58.

⁵⁷ *Id.*

⁵⁸ *Id.*

critical.⁵⁹ That extra time allows the vehicle to travel farther without driver intervention than the unautomated SAE Level 0 car during these crucial moments.⁶⁰

75. If, as in Tesla's case, the driver is led to believe the automated system, which Tesla itself calls "Autopilot" and "Full Self-Driving", provides greater control than traditional automated driver assist systems, the driver can be lulled into behaving as though the vehicle is actually an SAE Level 3 or Level 4 autonomous system when in reality it is still only a Level 2.⁶¹ Tesla knowingly and falsely fosters the understanding that Tesla vehicles are capable of identifying and safely negotiating hazardous situations that the car simply cannot.⁶²
76. This is particularly dangerous because it takes significantly longer for a driver to transition from Level 3 automated controls, even perceived ones, and regain situational awareness to react to road conditions, as compared to a driver using Level 2 automation.⁶³

⁵⁹ Willemsen, D., Stuiver, A., & Hogema, J. (2015, June) *Automated driving functions giving control back to the driver: A simulator study on driver state dependent strategies*. Paper presented at the 24th International Technical Conference on the Enhanced Safety of Vehicles, Gothenburg, Sweden.

⁶⁰ Bogna Szyk, *Stopping Distance Calculator*, <https://www.omnicalculator.com/physics/stopping-distance>.

⁶¹ T.W. Victor, E. Tivesten, P. Gustavsson, J. Johansson, F. Sangberg, M. Ljung Aust, *30 Automation expectation mismatch: Incorrect prediction despite eyes on threat and hands on wheel*, 60 HUMAN FACTORS, (8) (2018), at 1095–1116, [10.1177/0018720818788164](https://doi.org/10.1177/0018720818788164) ("a key component of driver engagement is cognitive (understanding the need for action), rather than purely visual (looking at the threat), or having hands on wheel."); R. Lin, L. Ma, W. Zhang, *An interview study exploring tesla drivers' behavioural adaptation*, 72 APPLIED ERGONOMICS (2018), 37–47, [10.1016/j.apergo.2018.04.006](https://doi.org/10.1016/j.apergo.2018.04.006).

⁶² *Is a self-driving car smarter than a seven-month-old?*, THE ECONOMIST, Science & Technology (Sept. 2, 2021 ed.), <https://www.economist.com/science-and-technology/is-it-smarter-than-a-seven-month-old/21804141> ("Autonomous vehicles are getting better, but they still don't understand the world in the way that a human being does. For a self-driving car, a bicycle that is momentarily hidden by a passing van is a bicycle that has ceased to exist."); see also E.R. Teoh, *What's in a name? drivers' perceptions of the use of five SAE level 2 driving automation systems*, 72 J. SAFETY RES., 134–51 (2020), [10.1016/j.jsr.2019.11.005](https://doi.org/10.1016/j.jsr.2019.11.005).

⁶³ M. Kuehn, Tobias Vogelpohl, M. Vollrath, *Takeover Times in Highly Automated Driving (Level 3)*, COMPUTER SCI., Paper Number 17-0027, 25ESV-000027.pdf (2017), <https://www-esv.nhtsa.dot.gov/Proceedings/25/25ESV-000027.pdf>. ("These reactions, which are required in order to understand the current traffic situation, are thus delayed by up to 5 seconds compared to the reactions of drivers in manual control in the same situation.").

77. Tesla, through its marketing and its CEO's assurances, encourages its drivers to believe their Tesla vehicles will drive themselves, and this misconception is reinforced when the automated system performs relatively well in normal, nonhazardous situations,⁶⁴ as was the case for Mr. McGee.⁶⁵ Thus, Tesla drivers can find themselves at greater risk than if they were using traditional assist systems or manual operations.⁶⁶
78. The problems with SAE Level 3 autonomy have been demonstrated by studies done by Waymo when it was tasked with developing an autonomous driving system for Google. In November 2017, John Krafcik, Waymo's CEO, said that five years earlier, he was developing assisted driving technology as a quick route to market.⁶⁷ As part of that development, Google's system would drive the vehicle on highways, then transfer responsibility back to a human on other roads or in circumstances beyond its programming (SAE Level 3 autonomous driving).⁶⁸ Krafcik admitted: "What we found was pretty scary. It's hard to take over because they [the drivers] have lost contextual awareness."⁶⁹
79. In a filmed experiment, Google's test drivers were seen playing with their phones and applying make-up at speeds up to 90km/h. One was even spotted napping at the wheel.⁷⁰ Not long after this test, management decided to focus solely on developing SAE Level 5

⁶⁴ B.D. Seppelt, T.W. Victor, *Potential solutions to human factors challenges in road vehicle automation*; G. Meyer, S. Beiker (Eds.), ROAD VEHICLE AUTOMATION 3, SPRINGER INT'L PUB'G, 131–48 (2016), [10.1007/978-3-319-40503-2_11](https://doi.org/10.1007/978-3-319-40503-2_11); Victor et al., 2018, Teoh, 2020, Lin et al., 2018, Abraham et al., 2017).

⁶⁵ See Exhibit 10, McGee Depo [178:10-179:6].

⁶⁶ B.D. Seppelt, B. Reimer, L. Russo, B. Mehler, J. Fisher, D. Friedman, *Consumer confusion with levels of vehicle automation*, 10TH INT'L DRIVING SYMP. ON HUMAN FACTORS IN DRIVER ASSESSMENT, TRAINING & VEHICLE DESIGN (2019), [https://www.safetylit.org/citations/index.php?fuseaction=citations.viewdetails&citationIds\[\]=citjournalarticle_621065_17](https://www.safetylit.org/citations/index.php?fuseaction=citations.viewdetails&citationIds[]=citjournalarticle_621065_17) Google Scholar.

⁶⁷ Derek Fung, *Napping driver leads Google to end level-three Autonomous development*, DRIVE, Nov. 9, 2017, <https://www.drive.com.au/news/google-stopped-level-three-self-driving-rd-after-driver-napped-at-the-wheel/>.

⁶⁸ *Id.*

⁶⁹ *Id.*

⁷⁰ *Id.*

autonomous vehicle technology, which would require no active driver intervention.⁷¹ The behavior of the Waymo drivers was consistent with that of Tesla Autopilot drivers interviewed in a 2018 study.⁷²

80. Speaking in a fireside chat at the National Governors Association meeting July 20, 2018, Krafcik told the group, “There are no autonomous systems available, zero on the road today. Anything you can buy on the road today is a driver-assist system, that means the driver is completely responsible for the car and I think there is so much confusion on that.”⁷³ Krafcik was referring to some of the issues caused by consumers believing that the assist systems currently on the market are more capable than they actually are, most notably Tesla’s Autopilot.⁷⁴ John Krafcik publicly admitted that autonomous vehicles might never work in all locations.⁷⁵
81. In January 2021, Waymo stopped using the term “self-driving” because it is dangerously misleading. Waymo said in its blog, “Unfortunately, we see that some automakers use the term ‘self-driving’ in an inaccurate way, giving consumers and the general public a false impression of the capabilities of driver-assist (not fully autonomous) technology. **That false impression can lead someone to unknowingly take risks (like taking their hands**

⁷¹ *Id.*

⁷² R. Lin, L. Ma, W. Zhang, *An interview study exploring tesla drivers’ behavioural adaptation*, 72 APPLIED ERGONOMICS, pp. 37–47 (2018), [10.1016/j.apergo.2018.04.006](https://doi.org/10.1016/j.apergo.2018.04.006), (“Engagement in secondary tasks during partially automated driving was universal” among a group of 20 Tesla drivers with one to five months experience with Autopilot).

⁷³ Sam Abuelsamid, *Transition to Autonomous Cars Will Take Longer Than You Think, Waymo CEO Tells Governors*, FORBES, July 20, 2018, <https://www.forbes.com/sites/samabuelsamid/2018/07/20/waymo-ceo-tells-governors-av-time-will-be-longer-than-you-think/#277b432cd7da>.

⁷⁴ *Id.*

⁷⁵ *Id.*

off the steering wheel) that could jeopardize not only their own safety but the safety of people around them.”⁷⁶

82. A study from the Massachusetts Institute of Technology (MIT) corroborates these findings.⁷⁷ This study provided a comprehensive analysis of glance behavior during transitions from Tesla’s Autopilot (AP) to manual driving in non-critical highway driving.⁷⁸ The study concluded that, “Changes in glance duration and pattern suggest a lower visual attention to the forward road when AP was engaged compared to after the disengagement to manual driving.”⁷⁹

OTHER SIMILAR TESLA INCIDENTS INVOLVING AUTOPILOT

83. Tesla was and remains aware of the inadequacies and defects with its Autopilot system. Tesla has received notice of numerous similar failures in vehicles on the road in which the system permitted a collision with an object while the Autopilot was engaged, many times leading to injuries and deaths. Such events include, but are not limited to:
- a. The January 20, 2016, crash of a Tesla Model S near Handan, China where the vehicle struck a street cleaning truck;⁸⁰
 - b. the May 7, 2016, crash of a Tesla Model S near Williston, Florida where the vehicle hit a semi-Trailer Truck turning across the lane in front of it;⁸¹

⁷⁶ Andrew J. Hawkins, *Waymo says it’s ditching the term ‘self-driving’ in dig at Tesla*, VERGE, Jan 6, 2021, <https://www.theverge.com/2021/1/6/22216848/waymo-change-self-driving-autonomous-language-tesla> (emphasis added).

⁷⁷ Morando, Gershon, Mehler, and Reimer, *A model for naturalistic glance behavior around Tesla Autopilot disengagements*, ELSEVIER, ACCIDENT ANALYSIS & PREVENTION, Volume 161, Oct. 2021, 106384, <https://www.sciencedirect.com/science/article/pii/S0001457521003791?via%3Dihub#>.

⁷⁸ *Id.*

⁷⁹ *Id.*

⁸⁰ Neal E. Boudette, *Autopilot Cited in Death of Chinese Tesla Driver*, N.Y. TIMES, Sept. 14, 2016, <https://www.nytimes.com/2016/09/15/business/fatal-Tesla-crash-in-china-involved-autopilot-government-tv-says.html>.

⁸¹ Danny Yadron and Dan Tynan, *Tesla driver dies in first fatal crash while using autopilot mode*, GUARDIAN, June 30, 2016. <https://www.theguardian.com/technology/2016/jun/30/Tesla-autopilot-death-self-driving-car-elon-musk>.

- c. the August 5, 2016, crash of a Tesla Model S into a car in China;⁸²
- d. the July 10, 2016, crash of a Tesla Model X in Montana that suddenly veered into highway barriers and crashed;⁸³
- e. the January 29, 2017, crash of a Tesla Model X into a guardrail and tree in China;⁸⁴
- f. the March 2, 2017, crash of a Tesla Model S in Dallas County, Texas where the vehicle struck lane barriers on a highway;⁸⁵
- g. the March 7, 2017, crash of a Tesla Model X into a van in China;⁸⁶
- h. the December 13, 2017, collision in which a Tesla Model X on Autopilot suddenly accelerated into the vehicle in front of it;⁸⁷
- i. the January 22, 2018, incident in which a Tesla Model S on Autopilot failed to brake and crashed into the back of a firetruck in Culver City, California.⁸⁸
- j. the March 23, 2018, crash of a Tesla Model X near Mountain View, California where the Tesla hit a barrier divider;⁸⁹
- k. the April 29, 2018, crash of a Tesla Model X near Tokyo, Japan where the Tesla hit a pedestrian and a vehicle in front of it on a highway;⁹⁰

⁸² Tycho de Feijter, "First Tesla Autopilot Crash In China," CARNEWSCHINA.COM, Aug. 5, 2016, <https://carnewschina.com/2016/08/05/first-tesla-autopilot-crash-in-china/>.

⁸³ Fred Lambert, *Tesla Autopilot crash in Montana: Drivers reveals new details and claims a 'cover up' by Tesla*, ELECTREK, July 22, 2016, <https://electrek.co/2016/07/22/tesla-autopilot-model-x-crash-montana-coverup/>.

⁸⁴ W.E. Ning, "Tesla Model X Crashes Into A Tree In China, Penetrated By Guardrail," CARNEWSCHINA.COM, Mar. 27, 2017, <https://carnewschina.com/2017/03/27/tesla-model-x-crashes-into-a-tree-in-china-penetrated-by-guardrail/>.

⁸⁵ Fred Lambert, *Tesla Autopilot crash caught on dashcam shows how not to use the system*, ELECTREK, Mar. 2, 2017, <https://electrek.co/2017/03/02/Tesla-autopilot-crash-video-how-note-to-use/>.

⁸⁶ Joey Wang, *Tesla Model X Hits Van In China, Autopilot Blamed*, CARNEWSCHINA.COM, Mar. 9, 2017, <https://carnewschina.com/2017/03/09/tesla-model-x-hits-van-in-china-autopilot-blamed/>.

⁸⁷ <https://www.plainsite.org/dockets/3hd2fpwvp/supreme-court-of-the-state-of-new-york-nassau-county/wang-jing-vs-tesla-inc/>.

⁸⁸ Fred Lambert, *Tesla Vehicle reportedly on Autopilot crashes into fire truck at 65 mph, no injury*, ELECTREK, Jan. 22, 2018, <https://electrek.co/2018/01/22/tesla-model-s-autopilot-crash-fire-truck/>.

⁸⁹ Mark Osborne, *Tesla car was on autopilot prior to fatal crash in California, company says*, ABC NEWS, Mar. 30, 2018, <https://abcnews.go.com/US/Tesla-car-autopilot-prior-fatal-crash-california-company/story?id=54142891>.

⁹⁰ Brad Anderson, *Tesla Autopilot Blamed On Fatal Japanese Model X Crash*, CARSCOOPS, Apr. 30, 2020, <https://www.carscoops.com/2020/04/Tesla-autopilot-blamed-on-fatal-japanese-model-x-crash/>.

- l. the May 11, 2018, crash of a Tesla Model S which slammed into a stopped fire truck at 60 mph while on autopilot near Salt Lake City, Utah;⁹¹
- m. the May 25, 2018, crash of a Tesla Model 3 while on autopilot in Greece;⁹²
- n. the May 29, 2018, crash of an unknown Tesla model into a stationary police car while on autopilot in California;⁹³
- o. the October 12, 2018, crash of a Tesla Model S near Orlando, Florida where the Tesla hit a vehicle in front of it on a highway;⁹⁴
- p. the January 30, 2019, crash of a Tesla Model X in Holland when the driver using an “Autosteer System” did not look forward for a few seconds, did not pay attention to the road and passed the double solid line.⁹⁵
- q. the February 10, 2019, crash of a Tesla Model X in North Brunswick, New Jersey, in which the car on Autopilot reportedly steered itself into a highway sign and a field while the driver tried to steer the car into the lane of traffic;⁹⁶
- r. the March 1, 2019, crash of a Tesla Model 3 near Delray Beach, Florida where the vehicle hit a semi-trailer truck turning across the lane in front of it;⁹⁷
- s. the incident giving rise to this action, the April 25, 2019, crash of a Tesla Model S which blew through an intersection and killed a pedestrian in the Florida Keys;⁹⁸

⁹¹ Marco della Cava, *Tesla driver in Utah crash kept taker her hands off wheel as car sped in Autopilot mode*, USA TODAY, May 16, 2018, <https://www.usatoday.com/story/tech/talkingtech/2018/05/16/nhtsa-looking-into-Tesla-crash-utah/617168002/>.

⁹² Fred Lambert, *Tesla Model 3 unofficial road trip ends in crash, driver blames Autopilot*, ELECTREK, May 25, 2018, <https://electrek.co/2018/05/25/tesla-model-3-unofficial-road-trip-crash-driver-blames-autopilot/>.

⁹³ Olivia Solon, *Tesla that crashed into police car was in ‘autopilot’ mode, California official says*, GUARDIAN, May 29, 2018, <https://www.theguardian.com/technology/2018/may/29/tesla-crash-autopilot-california-police-car>.

⁹⁴ Gal Tziperman, *Winter Garden man suing Tesla for autonomous driving crash*, ORLANDO SENTINEL, Oct. 30, 2018, <https://www.orlandosentinel.com/news/breaking-news/os-ne-Tesla-autopilot-lawsuit-autonomous-driving-20181030-story.html>.

⁹⁵ *Guilt in traffic*, EAST BRABANT DISTRICT COURT, March 3, 2019, <https://linkeddata.overheid.nl/front/portal/document-viewer?ext-id=ECLI:NL:RBOBR:2019:5057>.

⁹⁶ Carly Baldwin, *Self-Driving Tesla Crashes On Rt. 1 In North Brunswick: Police*, PATCH, Feb. 12, 2019, <https://patch.com/new-jersey/eastbrunswick/self-driving-tesla-crashes-rt-1-north-brunswick-police>.

⁹⁷ Fred Lambert, *Tesla Model 3 driver again dies in crash with trailer, Autopilot not yet ruled out*, ELECTREK, Mar. 1, 2019, <https://electrek.co/2019/03/01/Tesla-driver-crash-truck-trailer-autopilot/>.

⁹⁸ David Shepardson and Hyunjoo Jin, *U.S. probing fatal Tesla crash that killed pedestrian*, REUTERS, September 3, 2021, <https://www.reuters.com/business/autos-transportation/us-probing-fatal-tesla-crash-that-killed-pedestrian-2021-09-03/>.

- t. the July 6, 2019, crash of a Tesla Model S in Arcadia, California, when the vehicle's Autopilot suddenly malfunctioned and caused the vehicle to swerve into the median, causing serious injuries to the driver;⁹⁹
- u. the July 17, 2019, crash of a Tesla Model 3 into a wall while on Autopilot in California;¹⁰⁰
- v. the August 9, 2019, crash of a Tesla Model S into a tow truck in Russia while on Autopilot;¹⁰¹
- w. the August 24, 2019, crash in California involving a Ford pickup that was struck from behind by a Tesla Model 3 that was traveling about 60 mph on Autopilot. Neither Autopilot nor the driver slowed the vehicle until a fraction of a second before the crash;¹⁰²
- x. the September 17, 2019, crash involving an unknown Tesla model that drove into oncoming traffic in Florida while Autopilot was alleged;¹⁰³
- y. the November 19, 2019, crash in which a Tesla Model S crashed into the rear of a stopped Infiniti in New York;¹⁰⁴
- z. the December 7, 2019, crash of a Tesla Model 3 into a parked State Police car while on Autopilot in Connecticut;¹⁰⁵
- aa. the December 29, 2019, crash of a Tesla Model S that failed to stop at a red light while the driver was using Autopilot and collided with a Honda in the intersection, killing the two occupants of the Honda;¹⁰⁶

⁹⁹ *Hsu v. Tesla, Inc.*, No. 20STCV18473, SUPERIOR COURT OF THE STATE OF CALIFORNIA FOR THE COUNTY OF LOS ANGELES, filed May 14, 2020.

¹⁰⁰ <https://www.plainsite.org/dockets/41pi138xj/superior-court-of-california-county-of-los-angeles/leila-manshadi-v-tesla-inc-a-delaware-corporation-d/b/a-tesla-motors-inc/>

¹⁰¹ *3 injured as Tesla goes up in flames & explodes on Moscow freeway*, RT.COM, Aug. 11, 2019, <https://www.rt.com/russia/466247-tesla-blast-moscow-injured/>.

¹⁰² Neal E. Boudette, *Tesla says Autopilot Makes Its Cares Safer. Crash Victims Say It Kills*, N.Y. TIMES, July 5, 2021, <https://www.nytimes.com/2021/07/05/business/Tesla-autopilot-lawsuits-safety.html>.

¹⁰³ Cristobal Reyes, *Woman killed in Osceola County crash while trying to pass traffic, FHP says*, ORLANDO SENTINEL, Sept. 17, 2019, <https://www.orlandosentinel.com/news/osceola-county/os-ne-osceola-polk-line-road-fatal-crash-20190918-m5hgby6l5csfe2qo3mlmxr7sa-story.html>.

¹⁰⁴ <https://www.plainsite.org/dockets/4ao0s2kkd/supreme-court-of-the-state-of-new-york-nassau-county/matthew-ballen-v-tesla-inc/>

¹⁰⁵ Alfred Branch, *Tesla In 'Auto Pilot' Plows Into State Police Cruiser in Norwalk*, PATCH, December 7, 2019, <https://patch.com/connecticut/norwalk/tesla-auto-pilot-plows-state-police-cruiser-norwalk> Last accessed 6 September 2021.

¹⁰⁶ Ryan Beene, *Fatal Tesla crash in Gardena being investigated by NHTSA*, L.A. TIMES, Dec. 31, 2019, <https://www.latimes.com/business/story/2019-12-31/fatal-tesla-crash-nhtsa-gardena-los-angeles>.

- bb. the December 29, 2019, crash of a Tesla Model 3 into a parked fire truck in Indiana, killing the passenger;¹⁰⁷
- cc. the December 30, 2019, crash of a Tesla Model 3 into a stopped police car in Massachusetts;¹⁰⁸
- dd. the May 4, 2020, crash of a Tesla Model S when the driver had the car steering on when he hit and killed a trailer driver in Norway;¹⁰⁹
- ee. the May 31, 2020, crash of a Tesla Model 3 that drove into an overturned semi trailer;¹¹⁰
- ff. the June 21, 2020, crash of a Tesla Model 3 when the Tesla veered into the other lane and crashed into an oncoming car in Germany;¹¹¹
- gg. the July 14, 2020, crash of a Tesla Model S that drove into an Arizona police SUV, which was then pushed into an ambulance;¹¹²
- hh. the August 12, 2020, crash of a Tesla Model 3 that rear-ended a Sienna minivan repeatedly, causing the minivan to spin out of control in Saratoga, California. The Tesla continued traveling down the freeway off-ramp, striking a pickup at an intersection before winding up on the off-ramp embankment and catching fire, killing both occupants;¹¹³
- ii. the August 26, 2020, crash of an unidentified Tesla model into a North Carolina police car while the driver was watching a movie and the vehicle was on Autopilot;¹¹⁴

¹⁰⁷ Arizona woman dies after her Tesla crashes into fire truck on Indiana freeway, 12 NEWS, Dec. 29, 2019, <https://www.12news.com/article/news/local/arizona/arizona-woman-dies-after-her-car-crashes-into-fire-truck-on-indiana-freeway/75-349be661-18ff-452d-a0e0-e438b2e1f8e7>, Last accessed 23 January 2022.

¹⁰⁸ 2 Drivers Cited After State Police Cruisers Hit On Route 24, Mass Pike, CBS BOSTON, Dec. 31, 2019, <https://boston.cbslocal.com/2019/12/31/massachusetts-state-police-cruisers-hit-crashes-mass-pike-warren-route-24-west-bridgewater/>.

¹⁰⁹ Geir Roed, Tesla on auto-steering when man was cut down, MOTOR, Dec. 18, 2020, <https://motor.no/autopilot-nyheter-Tesla/Tesla-pa-auto-styring-da-mann-ble-meid-ned/188623>.

¹¹⁰ Fred Lambert, Video of Tesla Model 3 crashing into a truck on Autopilot goes viral, ELETRECK, June 1, 2020, <https://electrek.co/2020/06/01/tesla-model-3-crashing-truck-autopilot-video-viral/>.

¹¹¹ Update: Fatal accident on S255: Investigation against Tesla driver for negligent homicide, FREIE PRESSE, June 22, 2020 <https://www.freiepresse.de/drei-tote-bei-unfall-auf-autobahnzubringer-bei-aue-artikel10894951>.

¹¹² Ethan Baron, Tesla on 'Autopilot' hits police vehicle which hits ambulance, driver possibly drunk: police, BAY AREA NEWS GROUP, July 14, 2020. <https://www.mercurynews.com/2020/07/14/tesla-on-autopilot-hits-police-vehicle-which-hits-ambulance-driver-possibly-drunk-police/>.

¹¹³ Saratoga Man Killed in Fiery Crash Identified, MERCURYNEWS.COM, Aug. 13, 2020 <https://www.mercurynews.com/2020/08/13/saratoga-man-killed-in-fiery-freeway-crash-identified/>

¹¹⁴ Simone Jasper, Tesla driver crashes into cop car while watching movie on autopilot, NC officials say, NEWS & OBSERVER, Aug. 26, 2020, <https://www.newsobserver.com/news/state/north-carolina/article245267595.html>.

- jj. the December 10, 2020, crash of a Tesla Model X into apartment garage wall in Seoul, South Korea. The vehicle ignited, killed a passenger and injured 2 others; firefighters couldn't open the door to extract the passenger because electronic door lock system was inoperable due to fire;¹¹⁵
- kk. the February 27, 2021, crash of a 2019 Tesla into four vehicles including police cars in Texas;¹¹⁶
- ll. the March 17, 2021, crash of a Tesla Model 3 into a stopped police car in Michigan;¹¹⁷
- mm. the April 17, 2021, crash of a Tesla Model S which was traveling along a curve at a high rate of speed before crashing into a tree in The Woodlands near Houston, Texas;¹¹⁸
- nn. the May 19, 2021, incident, where a Tesla crashed into a Road Ranger in Florida;¹¹⁹
- oo. the July 10, 2021, incident, where a Tesla on Autopilot crashed into a California Highway Patrol vehicle;¹²⁰
- pp. the July 19, 2021, crash of a Tesla Model 3 that backed into a parking spot and was supposed to pull forward on its own and veer to the right, but instead, it unexpectedly went left in Fresno, California;¹²¹
- qq. the July 25, 2021, crash of a Tesla Model X which was in a 25 mph speed zone in Yosemite National Park and came across a fork in the road. The vehicle kept going straight, entered gravel and smashed into a boulder. The driver said that park

¹¹⁵ Kim Min-Joong, *Police ramp up investigation into fatal conflagration of Tesla Model X*, KOREA JOONGANG DAILY, Dec. 24, 2020, <https://koreajoongangdaily.joins.com/2020/12/24/business/industry/Tesla/20201224184400725.html>.

¹¹⁶ Jose Gonzalez, *Montgomery County deputies evade serious injury in Tesla crash*, COURIER, Mar. 2, 2021, <https://www.yourconroenews.com/neighborhood/moco/news/article/Montgomery-County-deputies-evade-serious-injury-15992663.php>.

¹¹⁷ Associated Press, *Tesla on autopilot crashes into Michigan trooper's patrol car*, DETROIT FREE PRESS, Mar. 17, 2021, <https://www.freep.com/story/news/local/michigan/2021/03/17/tesla-autopilot-crash-michigan-state-police-patrol-car/4731376001/>.

¹¹⁸ Lucas Manfredi, *Deadly Texas crash involving Tesla worth \$80,000 sparks 4-hour fire*, FOX BUS., Apr. 18, 2021, <https://www.foxbusiness.com/lifestyle/two-killed-in-driverless-Tesla-crash>.

¹¹⁹ Amanda Batchelor, *3 injured after Tesla collides with road ranger truck on I-95*; LOCAL 10 NEWS, May 19, 2021, <https://www.local10.com/news/local/2021/05/19/3-injured-after-tesla-collides-with-road-ranger-truck-on-i-95/>.

¹²⁰ *Woman Suspected of DUI Arrested After Crashing into CHP Vehicle on SR-56*, TIMES OF SAN DIEGO, July 10, 2021, <https://timesofsandiego.com/crime/2021/07/10/woman-suspected-of-dui-arrested-after-crashing-into-chp-vehicle-on-sr-56/>.

¹²¹ Shelby Bracho, *Man's Tesla crashes into pole using 'smart summon' valet feature*, FOX 26 NEWS, July 25, 2021, <https://kmph.com/news/local/mans-Tesla-crashes-into-pole-using-smart-summon-valet-feature>.

rangers told him that four other Tesla vehicles crashed at the same exact spot in Yosemite;¹²²

- rr. the July 26, 2021, crash of a Tesla Model Y that struck and killed a man who was changing his tire by the side of the road in New York;¹²³
- ss. the August 28, 2021, crash of a Tesla Model 3 into a parked police car in Florida while on Autopilot;¹²⁴
- tt. the September 16, 2021, incident involving an unidentified Tesla model in which a woman apparently passed out and was being followed by California Highway Patrol;¹²⁵
- uu. the October 15, 2021, crash of a Tesla Model 3 in Indiana in which the vehicle hydroplaned while on Autopilot and the car caught fire after running off the road;¹²⁶
- vv. a February 2, 2022, crash of a Tesla Model Y into a traffic barrier in downtown San Jose, California, with the car on Full Self Driving;¹²⁷
- ww. a March 7, 2022, crash of a Tesla vehicle on Autopilot which slammed into the back of a road maintenance vehicle and blocked the outer lane of a freeway; a BMW sedan then crashed into and killed a road maintenance worker who was setting up warning cones at the scene;¹²⁸
- xx. a July 7, 2022, crash of a Tesla vehicle on Autopilot that collided with a motorcycle on State Route 91 in Riverside, California, killing the motorcyclist;¹²⁹
- yy. a July 24, 2022, crash of a Tesla vehicle on Autopilot that collided with a

¹²²u/BBFLG, 5 Tesla Accidents in Same Location in Yosemite, REDDIT, Aug. 3, 2021 https://www.reddit.com/r/SelfDrivingCars/comments/oxhbit/5_Tesla_accidents_in_same_location_in_yosemite/.

¹²³ Tom Krisher, *Feds probe NY Tesla crash that killed man changing flat tire*, AP NEWS, Sept. 3, 2021, <https://apnews.com/article/technology-business-6127ae797c528ca1d5322efc43439a12>.

¹²⁴ Lora Kolodny, *A Tesla Model 3 hit a parked police car in Orlando, driver said she was 'in Autopilot'*, CNBC, Aug. 28, 2021, <https://www.cnn.com/2021/08/28/tesla-model-3-hit-a-parked-police-car-in-orlando-driver-said-she-was-in-autopilot.html>.

¹²⁵ Christiane Cordero, *Audio captures moments CHP stopped apparently passed-out driver of Tesla on Autopilot in Glendale*, EYEWITNESS NEWS ABC, Sept. 17, 2021, <https://abc7.com/tesla-autopilot-passed-out-driver-glendale-los-angeles/11028280/>.

¹²⁶ The Tesla Mex, *Tesla Model 3 on Fire filmed with iPhone 13 Pro Max after Hydroplaning accident*, Nov. 21, 2021, <https://www.youtube.com/watch?v=DsxIHJx41IE>.

¹²⁷ Fred Lambert, *Tesla Full Self-Driving Beta runs into a pole in what could be the first FSD accident caught on video*, ELECTREK, Feb. 5, 2022, <https://electrek.co/2022/02/04/tesla-full-self-driving-beta-crash-video/>.

¹²⁸ Phillip Charlier, *Tesla on Autopilot involved in fatal freeway crash*, TAIWAN ENGLISH NEWS, March 8, 2022, <https://taiwanenglishnews.com/tesla-on-autopilot-involved-in-fatal-freeway-crash/>.

¹²⁹ Tom Krishner, *US agency probes Tesla crashes that killed 2 motorcyclists*, ASSOCIATED PRESS, August 5, 2022, <https://apnews.com/article/technology-12ba38bd863e2b128a8e2914179049e0>

motorcycle on Interstate 15 near Draper, Utah, killing the motorcyclist;¹³⁰

zz. an August 12, 2022, crash of a Tesla Model S that smashed into a guard rail while on Full Self Driving.¹³¹

aaa. an August 26, 2022, crash involving a Tesla that drove into a motorcycle while on Autopilot in Palm Beach County, Florida, killing the motorcyclist;¹³²

bbb. a November 24, 2022, crash involving a Tesla suspected of being on Autopilot that unexpectedly stopped on the Bay Bridge in the San Francisco Bay Area;¹³³

ccc. a December 28, 2022, incident involving a Tesla on Autopilot in Germany in which the driver had rigged the steering wheel so that Autopilot would continue to function while the driver was asleep.¹³⁴

TESLA'S LACK OF EFFECTIVE AUTOMATIC EMERGENCY BRAKING (AEB) SYSTEM

84. Another defect that was a contributing cause to this crash is the lack of an *effective* Automatic Emergency Braking (AEB) system to perform as anticipated by the ordinary consumer.¹³⁵ According to Musk in 2014, “So we’re able to obviously do . . . **Active Emergency Braking so that it will brake if it sees any object that you are going to collide with,** it’ll self-park, automatic parallel parking, automatically go into a garage . . .

¹³⁰ *Id.*

¹³¹ Florin Amarlei, *Tesla Model S Unexpectedly Swerves Left and Crashes, the Owner Says It's FSD's Fault*, AUTOEVOLUTION, August 25, 2022, https://www.dropbox.com/sh/wlpcslque12d6jv/AADjzuTXXfWYiI3GIb_LzaJba?dl=0&preview=Tesla+Model+S+Unexpectedly+Swerves+Left+and+Crashes%2C+the+Owner+Says+It%27s+FSD%27s+Fault+-+autoevolution.pdf

¹³² Matt McFarland, *Tesla Autopilot's safety question after latest fatal motorcycle crash*, CNN Business, October 17, 2022, <https://www.cnn.com/2022/10/17/business/tesla-motorcycle-crashes-autopilot/index.html>

¹³³ Tom Krisher, *US Probing Automated Driving System Use in Tesla Crash on Bay Bridge*, NBCBAYAREA.COM, December 22, 2022 <https://www.nbcbayarea.com/news/local/investigation-automated-driving-system-tesla-crash-bay-bridge/3112247/>

¹³⁴ Gustavo Henrique Ruffo, *Police Stop Tesla Driver Who Slept on an Autobahn at 68 MPH on Autopilot*, AUTOEVOLUTION, December 30, 2022 <https://www.autoevolution.com/news/police-stop-tesla-driver-who-slept-on-an-autobahn-at-684-mph-on-autopilot-207437.html>

¹³⁵ Russ Mitchell, *A Tesla mystery: Why didn't auto-braking stop these crashes?*, L.A. TIMES, Oct. 7, 2021, <https://www.latimes.com/business/story/2021-10-07/why-arent-automatic-braking-systems-stopping-deadly-tesla-crashes>

in fact, when you get home you'll actually be able to just step out of the car and have it park itself in your garage. Including, it'll open the door, and it'll go in and park itself.”¹³⁶

85. Yet, despite the fact that the Subject Vehicle was marketed and sold as a state-of-the-art vehicle, multiple other manufacturers, including makers of much less expensive models like Subaru, Mazda, Chrysler, Mitsubishi, and Honda, had made Automatic Emergency Braking (“AEB”) safety features available by the 2019 Model Year.¹³⁷ Tesla knew before this event, and knows of events since this one, that the lack of an effective Automatic Emergency Braking system in their vehicles allowed a crash to occur that should have otherwise been avoided or reduced in severity. Each of the above-referenced events in which the vehicle crashed into a vehicle, building, or other structure in front of it was notice to Tesla of the defect.

TESLA’S AUTOPILOT SYSTEM LACKS APPROPRIATE SAFEGUARDS

86. Despite Tesla’s claims that its semi-autonomous system is safer than others on the market, the truth is, other manufacturers’ systems provide substantially more safeguards than Tesla’s.
87. Tesla’s system uses sensors such as cameras and radar to monitor a car’s speed and steering in certain traffic situations.¹³⁸ These assist the driver to stay within the lane, avoid other vehicles and barriers, and, in combination with other systems, such as Automatic Emergency Braking, help the driver avoid mishaps.¹³⁹ These systems fall within the SAE Level 2 category.

¹³⁶ Elon Musk, *Tesla Unveils Dual Motor and Autopilot*, Oct. 10, 2014, at 8:44–9:21, https://youtu.be/FZ6lZJWL_Xk.

¹³⁷ Austin Lott, *Least Expensive Cars With Active Safety Systems*, MOTORTREND, Apr. 22, 2015, <http://motortrend.com/news/least-expensive-cars-with-active-safety-systems/>; <https://consumerreports.org/cro/magazine/2015/04/cars-that-can-save-your-life/index.htm>.

¹³⁸ *Id.*

¹³⁹ *Id.*

88. However, as pointed out above, these systems come at a cost because they reduce driver attention and delay reaction time should the systems fail. To offset this problem, some manufacturers have developed ways to monitor the driver's behavior to better insure the driver is as alert as possible so that they can assume full control of the vehicle if the system fails or if road conditions are not suitable for the automation.
89. Rather than encourage drivers to trust automated systems, as Tesla has done, others in the automotive industry diligently remind drivers that they must remain focused, with hands on the steering wheel, ready to take emergency action at all times. Conversely, Tesla discounts the need for driver monitoring because it claims, despite contrary evidence,¹⁴⁰ that its automated functions perform better than humans.¹⁴¹ As Musk has said, "If you have a system that's at or below human level reliability, then driver monitoring makes sense. But if your system is dramatically better, more reliable than a human, then driving, monitoring is not – does not help much."¹⁴² This rationalization is flatly unsupported by evidence showing Tesla's automated systems perform as well as humans, let alone "dramatically better".¹⁴³ In fact, close examination of the available data suggests Tesla's automated systems perform **worse** than humans.¹⁴⁴
90. Some systems monitor the driver's direction of vision and use auditory and tactile warnings to alert the driver if their gaze wanders from the road. These systems will disconnect the

¹⁴⁰ See, e.g., Russ Mitchell, *Agency Might Have Overstated Tesla Autopilot's Safety Impact*, GOV'T TECH., Feb. 14, 2019, <https://www.govtech.com/fs/agency-might-have-overstated-tesla-autopilots-safety-impact.html>.

¹⁴¹[21:27-24:26] Elon Musk: Tesla Autopilot | Lex Fridman Podcast #18, <https://www.youtube.com/watch?v=dEv99vxKjVI>

¹⁴² *Id.*

¹⁴³ Noah Goodall, *Normalizing crash risk of partially automated vehicles under sparse data*, JOURNAL OF TRANSPORTATION SAFETY & SECURITY, (2023) DOI: 10.1080/19439962.2023.2178566

¹⁴⁴ See, e.g., Mitchell, *supra*, ("For the small minority of cars for which mileage data were provided both before and after Autosteer was installed, Teslas were involved in 60 percent more crashes, Whitfield concluded. That could mean cars with Autosteer were more dangerous than cars without.").

autonomous features if the driver doesn't respond.¹⁴⁵ For instance, GM's Super Cruise has an attention tracking system in the front seat, including infrared emitters and a camera on the steering wheel that monitors eye gaze and head position, and it shuts down if the driver fails to respond to visual and audible warnings.¹⁴⁶ Ford and Subaru have similar technology.¹⁴⁷ Since the crash that forms the basis of this action, Tesla has now turned on a driver monitoring camera in some of its vehicles and updated its software to recognize emergency responder vehicle lights at night.¹⁴⁸ Tesla added this function only after NHTSA launched its investigation of Tesla crashes into emergency vehicles.¹⁴⁹ NHTSA has formally asked Tesla to explain why it did not comply with 49 U.S.C. §30118 by filing the required recall notice in connection with this update.¹⁵⁰

91. Consumer Reports now provides an annual analysis of active driving assistance systems. Their evaluations place great emphasis on a system's ability to monitor whether the driver is paying attention.¹⁵¹ Consumer Reports' manager of safety policy, William Wallace,

¹⁴⁵ See Sasha Lekach, *GM's Super Cruise feels like it's self-driving, but it's not; It's dangerous to think the car is in control*, MASHABLE, Feb. 9, 2021, <https://mashable.com/article/gm-super-cruise-advanced-driving-system>.

¹⁴⁶ *Id.*

¹⁴⁷ See, Mark Phelan, *2020 Subaru models will greet you, help you keep your eyes on the road*, DETROIT FREE PRESS, August 3, 2019, <https://www.freep.com/story/money/cars/mark-phelan/2019/08/03/subaru-driverfocus-outback-forester-legacy/1903279001/>

¹⁴⁸ Ramey, *Tesla Autopilot Will Now Detect Emergency Lights, but Only at Night*, AUTOWEEK, Sept. 22, 2021 <https://www.autoweek.com/news/green-cars/a37694444/tesla-autopilot-will-now-detect-emergency-lights-but-only-at-night/>.

¹⁴⁹ See attached Exhibit 1, National Highway Traffic Safety Administration [NHTSA] ODI Resume for Investigation number PE 21-020.

¹⁵⁰ See attached Exhibit 3, *Letter from Gregory Magno, Chief, Vehicle Defects Division -D, Office of Defects Investigation, NHTSA, to Eddie Gates, Director, Field Quality, Tesla, Inc.*, October 12, 2021. ("This recall notice must be filed with NHTSA no more than five working days after the manufacturer knew or should have known of the safety defect or noncompliance. See 49 C.F.R. § 573.6(b); see also *United States v. Gen. Motors Corp.*, 656 F. Supp. 1555, 1559 n.5 (D.D.C. 1987). Any manufacturer issuing an over-the-air update that mitigates a defect that poses an unreasonable risk to motor vehicle safety is required to timely file an accompanying recall notice to NHTSA pursuant to 49 U.S.C. § 30118 and 49 C.F.R. Part 573.")

¹⁵¹ Mike Monticello, *Cadillac's Super Cruise Outperforms Other Driving Assistance Systems*, CONSUMER REPORTS, October 28, 2020, <https://www.consumerreports.org/car-safety/cadillac-super-cruise-outperforms-other-active-driving-assistance-systems/>.

stated, “The evidence is clear: If a car makes it easier for people to take their attention off the road, they’re going to do so – with potentially deadly consequences.”¹⁵² Wallace continued, “It’s critical for active driving assistance systems to come with safety features that actually verify drivers are paying attention and are ready to take action at all times. Otherwise, these systems’ safety risks could end up outweighing their benefits.”¹⁵³

92. Consumer Reports tested one of Tesla’s latest iterations of its “Full Self-Driving” software and reported the software lacks safeguards and warned the system’s use on public roads “puts the public at risk.”¹⁵⁴ “Videos of FSD Beta 9 in action don’t show a system that makes driving safer or even less stressful,” says Jake Fisher, senior director of Consumer Reports’ Auto Test Center. “Consumers are simply paying to be test engineers for developing technology without adequate safety protection.”¹⁵⁵
93. Tesla has released additional versions of its FSD; one in October 2021 was FSD Beta 10.3. However, only days after the release of this version, Tesla pulled it and rolled back to FSD Beta 10.2 because of “issues” including complaints of false crash warnings.¹⁵⁶ Even Musk now admits, “I thought the self-driving problem would be hard, but it was harder than I thought. It’s not like I thought it’d be easy, I thought it would be very hard, but it was

¹⁵² *Id.*

¹⁵³ *Id.*

¹⁵⁴ David Shepardson, *Consumer Reports says Tesla's 'Full Self-Driving' software lacks safeguards*, REUTERS, July 20, 2021 <https://www.reuters.com/business/autos-transportation/consumer-reports-says-Teslas-full-self-driving-software-lacks-safeguards-2021-07-20/>.

¹⁵⁵ Keith Barry, *Tesla’s ‘Full Self-Driving’ Beta Software Used on Public Roads Lacks Safeguards*, *Consumer Reports’ car safety experts worry that Tesla continues to use vehicle owners as beta testers for its new features, putting others on the road at risk*, CONSUMER REPS., July 19, 2021, <https://www.consumerreports.org/car-safety/Tesla-full-self-driving-beta-software-lacks-safeguards-a6698414036/>.

¹⁵⁶ Richard Lawler, *Tesla pulled its latest ‘Full Self Driving beta after testers complained about false crash warnings and other bugs*, THE VERGE, October 24, 2021, <https://www.theverge.com/2021/10/24/22743628/elon-musk-tesla-fsd-beta-10-3-rollback-issues-phantom-fcw> Last accessed 26 October 2021.

actually way harder than even that.”¹⁵⁷ Tesla never referred to this “roll back” as a recall, as required by law.¹⁵⁸

94. Further, Tesla uses onscreen graphics as part of its Autopilot system which appear on the large monitor used by the driver to operate many vehicle functions. Fisher is not alone in believing that “Tesla should at the very least be monitoring drivers in real time to ensure that they’re paying attention while using new software.”¹⁵⁹ For example, Fisher says the updated software has “impressive” onscreen graphics, but he’s worried that even a brief glance by the driver at the display might be too long to prevent the system from crashing into a car or pedestrian.¹⁶⁰
95. Among the most troubling aspects of Tesla’s claims that its “Autopilot” and “Full Self-Driving” features are safer than other vehicles with automated features is that Tesla jealously guards its information as to the incidents in which the FSD system has failed.¹⁶¹ For a while, Tesla required those with access to the car’s FSD Early Access Program (EAP) system to sign a non-disclosure agreement that specifically prohibits them from speaking to the media or giving test rides to the media.¹⁶² Tesla also specifically discourages its owners from sharing video of automated feature mistakes.¹⁶³ Without accurate data about incidents in which Tesla’s automation system has failed, assessment of Tesla’s claims of its safety becomes impossible to verify and therefore meaningless. Tesla’s efforts to limit

¹⁵⁷ *Elon Musk: SpaceX, Mars, Tesla Autopilot, Self-Driving, Robotics, and AI* | Lex Fridman Podcast #252, Dec. 28, 2021, at [1:06:05 – 1:06:13] <https://www.youtube.com/watch?v=DxREm3s1scA>.

¹⁵⁸ See Exhibit 9.

¹⁵⁹ *Id.*

¹⁶⁰ *Id.*

¹⁶¹ O’Kane, *Tesla asks owners to share fewer clips of ‘Full Self-Driving’ beta mistakes*, VERGE, Sept. 28, 2021, <https://www.theverge.com/2021/9/28/22696463/tesla-fsd-beta-nda-video-clips-controversy-full-self-driving>.

¹⁶² Aaron Gordon, *How Tesla’s ‘Self-Driving’ Beta Testers Protect the Company From Critics*, VICE, Sept. 27, 2021, <https://www.vice.com/en/article/m7ezxq/how-teslas-self-driving-beta-testers-protect-the-company-from-critics>.

¹⁶³ See O’Kane, *supra*.

public disclosure of safety information have caught the attention of NHTSA, resulting in a Special Order Directed to Tesla, Inc, issued 12 October 2021.¹⁶⁴

96. As stated by the drafters of the 18 August 2021 Letter from the U.S. Senate to the Federal Trade Commission, “Tesla and Mr. Musk’s repeated overstatements of their vehicle’s capabilities – despite clear and frequent warnings – demonstrate a deeply concerning disregard for the safety of those on the road and require real accountability. Their claims put Tesla drivers – and all of the travelling public – at risk of serious injury or death. In light of these concerns, we urge you to swiftly open an investigation into Tesla’s repeated and overstated claims about their Autopilot and Full Self-Driving features and take appropriate enforcement action to prevent further injury or death as a result of any Tesla feature.”¹⁶⁵

FACTS COMMON TO ALL CLAIMS

97. Plaintiffs re-allege the foregoing as if fully set forth herein.
98. On or about April 25, 2019, the Vehicle was owned by George McGee.
99. At all material times, the Vehicle was equipped with what Tesla calls “Autopilot”, a suite of features and functions meant to assist drivers in driving and operating Tesla’s vehicles.
100. At all material times, the Autopilot functions of the Vehicle included but were not limited to automatic steering (Autosteer), traffic-aware cruise control, collision avoidance, and speed assistance; the Vehicle also had an automatic emergency braking system.
101. At all material times, George McGee purchased the vehicle in large part because of the Autopilot and other safety features advertised by Tesla. More specifically, McGee

¹⁶⁴ See Exhibit 11.

¹⁶⁵ See Exhibit 5, 18 August 2021 Letter from the United States Senate to The Honorable Lina Khan, Chair, Federal Trade Commission.

purchased the subject Tesla Vehicle because he wanted a vehicle that would provide him with ample assistance while driving, and based on marketing and advertisements he believed that Tesla's subject vehicle would provide such ample driving assistance.

102. On or about April 25, 2019, George McGee was operating and/or driving the Vehicle eastbound on CR-905A, also known as Card Sound Road, in Key Largo, Monroe County, Florida, and was approaching the 3-way T-intersection with County Road 905.
103. At the subject intersection, Card Sound Road ends, and drivers eastbound on Card Sound Road must first come to a stop at a stop sign before turning either left onto northbound County Road 905 or right onto southbound County Road 905.
104. At the subject intersection, in addition to the aforementioned stop sign, there is also an overhead flashing red light and yellow caution signs which alert all drivers on eastbound Card Sound Road of the end of the roadway and the need to stop and then turn onto County Road 905.
105. At that time and place, George McGee had activated the Autopilot functions in his Tesla and was relying on its ability to properly steer and navigate the Vehicle, to detect obstacles in the roadway ahead of the Vehicle, to reduce speed and/or come to a complete stop when such obstacles were detected, and to effectively warn him of a need for him to take action to avoid a collision.
106. Because he was relying on the Vehicle's Autopilot and safety systems, George McGee took his eyes off the road to look at his phone as he was approaching the T-intersection at CR-905A.
107. At that same time and place, Plaintiff, Dillon Angulo, had been driving a Chevrolet Tahoe owned by his mother and had lawfully parked that vehicle on the shoulder of the road on

the east side of County Road 905, directly across from the end of eastbound Card Sound Road.

108. After parking, Plaintiff Dillon Angulo and his companion Naibel Benavides Leon were standing outside of and directly next to Plaintiff's Chevrolet Tahoe.
109. At that time, the Autopilot of George McGee's vehicle failed to detect the end of Card Sound Road (including a failure to detect the various traffic control devices) and further failed to detect the substantial profile of the Chevrolet Tahoe at any point, despite the fact that the vehicle and all of the referenced traffic signals, signs and warnings were directly in front of and in the path of the Vehicle.
110. As a result, the Vehicle continued eastbound through the intersection without initiating the brakes, and the Vehicle struck Plaintiff's Chevrolet Tahoe at over 50 miles per hour, causing it to violently rotate and strike Dillon Angulo and Naibel Benavides Leon, killing Ms. Benavides Leon and causing debilitating injuries to Dillon Angulo.
111. As set out above, NHTSA has issued a recall of all Tesla vehicles equipped with Autopilot or Full Self-Driving software to address the defect NHTSA described as follows: "In certain circumstances when Autosteer is engaged, the prominence and scope of the feature's controls may not be sufficient to prevent driver misuse of the SAE Level 2 advanced driver-assistance feature."
112. Thus far, it is apparent that Tesla has not adequately responded to NHTSA's findings by adding warnings. Testers at Consumer Reports "did not notice any differences when

activating or using Autopilot's flagship feature, Autosteer, outside of the controlled-access highways where Tesla says the software is designed to be used".¹⁶⁶

113. Further, Tesla continues to steadfastly refuse to restrict operation of Autopilot and Autosteer to the areas in which this technology was designed to operate, a remedy that would further help correct the dangerously defective system.¹⁶⁷

COUNT 1 – STRICT PRODUCTS LIABILITY
(Defective Design)

114. Plaintiffs re-allege the foregoing as if fully set forth herein.
115. At all material times Tesla was engaged in the business of manufacturing, fabricating, designing, assembling, distributing, selling, inspecting, warranting, leasing, renting, retailing, and advertising vehicles, including the Vehicle equipped with Tesla's Autopilot systems suite.
116. Tesla manufactured, designed, assembled, tested, inspected, marketed, distributed, and sold their vehicles, including the Vehicle, and their component parts including Tesla's Autopilot system and suite of driver assistance features technology with defects in design which made them dangerous, hazardous, and unsafe for their intended and reasonably foreseeable use.
117. Tesla's vehicles, including the Vehicle, contained design defects when the vehicles were introduced into the stream of commerce by Tesla.
118. Tesla's vehicles, including the Vehicle, were defective and unsafe for their intended use.

¹⁶⁶ Sean O'Kane, *Consumer Reports says Tesla's Autopilot recall fix is 'insufficient'*, TECHCRUNCH, December 20, 2023, <https://techcrunch.com/2023/12/20/tesla-autopilot-recall-consumer-reports/>

¹⁶⁷ Faiz Siddiqui and Trisha Thadani, *Recalling almost every Tesla in America won't fix safety issues, experts say*, THE WASHINGTON POST, December 16, 2023, <https://www.washingtonpost.com/technology/2023/12/16/tesla-autopilot-recall/>

119. Due to the design defects, the Vehicle failed to perform as safely as an ordinary consumer would expect when used in an intended or reasonably foreseeable manner.
120. At all material times, Tesla knew and intended that consumers would use and drive their vehicles as the driver Mr. McGee did on April 25, 2019.
121. The design defects in the Vehicle and Tesla's Autopilot system suite of technology (the "system") included defective and unsafe characteristics such as, but not limited to:
 - a. the failure to adequately monitor and determine driver engagement;
 - b. the failure to adequately detect and respond to obstacles in the Vehicle's path;
 - c. the failure to adequately detect and respond to the end of a roadway;
 - d. the failure to adequately detect and respond to traffic control devices, such as the signs and flashing lights demarking the intersection;
 - e. the failure to adequately ensure the safety of the system before putting it on the market;
 - f. the failure to include adequate warnings if the system encounters conditions making it unsafe to use the system;
 - g. deactivation of the automatic emergency braking system when the accelerator is depressed and failure to adequately warn the driver of same;
 - h. the failure to ensure adequate takeover time for the driver in the event of a system failure; and
 - i. the failure to restrict the ability of drivers to use Autopilot in areas outside which Tesla designed the system to operate safely, also known as "geofencing".
122. Tesla failed to meet the expectations of the reasonable consumer by placing on the market the Vehicle which failed to incorporate an Autopilot system that included safety

components which would keep the vehicle only in designated travel lanes, reasonably match vehicle speed to traffic conditions, keep the vehicle within its lane, prevent use of Autopilot features where they were not designed to be used safely, and provide effective active automatic collision avoidance and automatic emergency braking to detect and avoid collisions with in-path objects.

123. By reason of the omission of the above-described safety systems, features and components from the Vehicle, on and prior to the date of the subject collision, the Vehicle was defective in its design, in that the Autopilot systems of the Vehicle would not and did not perform in a manner as safely as an ordinary consumer would expect when the vehicle was subjected to foreseeable conditions.
124. Additionally, the risk of danger in the design of the Vehicle outweighed any benefits of the design, and especially where safer alternative designs were available at the time of manufacture. Such reasonably safer alternative designs include, but are not limited to, the following:
 - a. Driver-facing cameras that would monitor the driver's eyes and/or head position as a way to determine driver engagement and awareness, and effectively alert the driver if the driver became inattentive to driving tasks;
 - b. LIDAR or any other reasonable alternative system that may or may not include the use of radar technology for the detection of obstacles, road features, vehicles, or pedestrians in the path of a Tesla vehicle;
 - c. Effective driver alert systems that would notify the driver if road conditions rendered the use of Autopilot features unsafe;

- d. Effective driver alert systems that would notify the driver of any impending obstacles in the Vehicle's path, including but not limited to hazard lights, stopped vehicles, and pedestrians;
- e. Effective restrictions blocking the availability of Autopilot features in unsafe conditions, using methods such as geofencing;
- f. Effective Automatic-Emergency-Braking systems that would safely stop the Vehicle before striking objects, vehicles, or pedestrians in its pathway;
- g. Effective driver alert systems that would timely notify the driver if the Autopilot system was in any way impaired or malfunctioning; and
- h. Effective driver alert systems that would timely notify the driver of an imminent need to take over the steering and braking functions of the vehicle if necessary to avoid a collision.

125. Therefore, the Vehicle and all of Tesla's vehicles that are equipped with Tesla's Autopilot system suite of technology presented and continue to present a substantial and unreasonable risk of serious injuries to drivers of Tesla vehicles and the public.

126. The defects in the design of all Tesla vehicles equipped with Tesla's Autopilot system, including the Vehicle, were a substantial factor in causing the subject collision and Plaintiffs' injuries and damages as alleged herein.

127. The design defects of the Vehicle were a substantial factor in causing Plaintiff Dillon Angulo's serious injuries and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for enjoyment of life, expenses of hospitalization, medical and nursing care and treatment, loss of earnings and wages in the past as well as loss of and/or

reduction of earning capacity in the future. The losses are either permanent or continuing, and Plaintiff Dillon Angulo will suffer the losses in the future.

128. Further, the design defects of the Vehicle were a substantial factor in causing Naibel Benavides Leon's death and the resulting damages alleged herein.

WHEREFORE, Plaintiffs demand judgment against Tesla for compensatory damages together with post-judgment interest and taxable costs incurred in this action.

COUNT 2 – STRICT PRODUCTS LIABILITY

(Failure to Warn)

129. Plaintiffs re-allege the foregoing as if fully set forth herein.
130. At all material times, Tesla was engaged in the business of manufacturing, fabricating, designing, assembling, distributing, selling, inspecting, warranting, leasing, renting, retailing, and advertising vehicles, including the Vehicle equipped with Tesla's Autopilot systems suite.
131. On April 25, 2019, George McGee was driving the Vehicle in a reasonably foreseeable manner, with Tesla's Autopilot systems engaged, when the Vehicle failed to detect the end of Card Sound Road, the presence of numerous traffic control devices, and the substantial profile of the Chevrolet Tahoe, all of which were directly in front of the Vehicle's path. As a result of these failures, the Vehicle proceeded through the intersection, struck the Chevrolet Tahoe, and caused substantial injuries to Plaintiffs.
132. At all material times, Tesla knew that consumers would use, misuse, and drive their Autopilot-equipped vehicles in the same manner that George McGee did in the time leading up to the collision at issue.

133. An ordinary consumer would not have recognized the potential risks and dangers inherent in the operation and use of the Vehicle with Autopilot engaged, including the fact that the Vehicle would be unable to recognize and effectively avoid the end of a roadway, the presence of a stop sign, the presence of flashing red overhead lights, the presence of yellow caution traffic signs, and/or the presence of a stationary vehicle parked directly in front of its path.
134. Alternatively, an ordinary consumer would not have recognized the potential risks and dangers inherent in the operation and use of the Vehicle with Autopilot engaged, including the fact that the Vehicle would be unable to timely and effectively notify the driver that the Autopilot and Automatic Emergency Braking features would fail to recognize and effectively avoid the end of a roadway, the presence of a stop sign, the presence of flashing red overhead lights, the presence of yellow caution traffic signs, and/or the presence of a stationary vehicle parked directly in front of its path.
135. At all times, Tesla failed to reasonably warn of the dangers inherent in the use of the Autopilot functions when used in a reasonably foreseeable manner.
136. As a direct and proximate result of Tesla's failure to warn of the design defects and dangers of its Autopilot functions, Plaintiff Dillon Angulo suffered serious bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for enjoyment of life, expenses of hospitalization, medical and nursing care and treatment, loss of earnings and wages in the past as well as loss of and/or reduction of earning capacity in the future. The losses are either permanent or continuing, and Plaintiff Dillon Angulo will suffer the losses in the future.

137. Further, the above-described defects of the Vehicle were a substantial factor in causing Naibel Benavides Leon's death and the resulting damages alleged herein.

WHEREFORE, Plaintiffs demand judgment against Tesla for compensatory damages together with post-judgment interest and taxable costs incurred in this action.

COUNT 3 – STRICT PRODUCTS LIABILITY

(Defective Manufacture)

138. Plaintiffs re-allege the foregoing as if fully set forth herein.

139. At all material times Tesla was engaged in the business of manufacturing, fabricating, designing, assembling, distributing, selling, inspecting, warranting, leasing, renting, retailing, and advertising vehicles, including the Vehicle equipped with Tesla's Autopilot systems suite.

140. At all material times, the Vehicle contained manufacturing defects which rendered the Vehicle unreasonably dangerous, in that:

- a. Defects in the Vehicle caused the Vehicle to fail to adequately monitor and determine driver-engagement;
- b. Defects in the Vehicle caused the Vehicle to fail to adequately detect and respond to obstacles in the Vehicle's path;
- c. Defects in the Vehicle caused the Vehicle to fail to adequately detect and respond to the end of a roadway;
- d. Defects in the Vehicle caused the Vehicle to fail to adequately detect and respond to traffic control devices in the Vehicle's path;

e. Defects in the Vehicle caused the Autopilot systems to fail without giving the driver adequate warning or notice that the driver needed to take over control of the Vehicle.

141. At all material times, the manufacturing defects in the Vehicle were present before it left control of Tesla, at the time that Tesla placed the Vehicle into the stream of commerce, and at the time of the subject collision.

142. As a direct and proximate result of the subject Vehicle's manufacturing defects, Plaintiff Dillon Angulo suffered serious bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for enjoyment of life, expenses of hospitalization, medical and nursing care and treatment, loss of earnings and wages in the past as well as loss of and/or reduction of earning capacity in the future. The losses are either permanent or continuing, and Plaintiff Dillon Angulo will suffer the losses in the future.

143. Further, the above-described defects of the Vehicle were a substantial factor in causing Naibel Benavides Leon's death and the resulting damages alleged herein.

WHEREFORE, Plaintiffs demand judgment against Tesla for compensatory damages together with post-judgment interest and taxable costs incurred in this action.

COUNT 4 – NEGLIGENT MISREPRESENTATION

144. Plaintiffs re-allege the foregoing as if fully set forth herein.

145. At all material times Tesla was engaged in the business of manufacturing, fabricating, designing, assembling, distributing, selling, inspecting, warranting, leasing, renting, retailing, and advertising vehicles, including the Vehicle equipped with Tesla's Autopilot system suite.

146. At all material times Tesla had a duty to represent to the public and its consumers, including but not limited to George McGee, the true capabilities and the true limitations of its Autopilot system.
147. At all material times Tesla falsely advertised, marketed, and represented that its Autopilot had capabilities far beyond those which it actually possessed.
148. For instance, just by naming its product “Autopilot”, Tesla created the false impression among consumers, including George McGee, that its vehicles could drive automatically and autonomously, with reduced driver input or without any driver input. This impression, carefully crafted by Tesla to increase its sales and brand identity, was false in that the Autopilot systems are not autonomous and “self-driving”.
149. Additionally, Tesla distributed marketing and advertising materials intended to underscore the false autonomous functionality of its Autopilot systems, such as (but not limited to) an advertisement video that showed a Tesla vehicle, equipped with Autopilot, successfully navigating through city streets without a driver behind the wheel. This video was, in fact, a heavily orchestrated marketing video, with the vehicle at issue having been programmed with detailed three-dimensional digital maps not available to drivers using the commercially available version of Autopilot. Moreover, the vehicle in the video actually crashed during the filming of that video, an event never disclosed by Tesla.
150. At all times, the actions of Tesla in misrepresenting the true capabilities and corresponding limitations of the Autopilot systems created a false expectation among consumers and Tesla drivers as to the extent that they could rely upon Autopilot.

151. These false expectations caused and still cause Tesla drivers, such as George McGee, to be far too inattentive in their own driving and instead to put far too much reliance on Tesla's Autopilot functions to safely navigate any hazards on the road.
152. As a direct result of these false expectations which were cultivated and created by Tesla, George McGee was far less vigilant and attentive while driving on the date of this subject collision than he otherwise would have been, which caused the subject collision and Plaintiffs' injuries.
153. At all material times, George McGee was operating the subject Vehicle in a manner that was intended and/or reasonably foreseeable to Tesla.
154. Tesla knew or should have known the reliance that drivers including McGee would place on the Autopilot system, given the nature of the marketing and advertising that Tesla disseminated to the public and to George McGee.
155. As a direct and proximate result of the negligent acts or omissions of Tesla, Plaintiff Dillon Angulo suffered serious bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for enjoyment of life, expenses of hospitalization, medical and nursing care and treatment, loss of earnings and wages in the past as well as loss of and/or reduction of earning capacity in the future. The losses are either permanent or continuing, and Plaintiff Dillon Angulo will suffer the losses in the future.
156. Further, the above-described defects of the Vehicle were a substantial factor in causing Naibel Benavides Leon's death and the resulting damages alleged herein.

WHEREFORE, Plaintiffs demand judgment against Tesla for compensatory damages together with post judgment interest and taxable costs incurred in this action.

COMPENSATORY DAMAGES – DILLON ANGULO

157. Plaintiffs re-allege the foregoing as if fully set forth herein.
158. As a result of the acts or omissions of Tesla, Plaintiff Dillon Angulo suffered serious injuries and seeks compensation for the following:
- a. Past and future pain and suffering,
 - b. Past and future disability,
 - c. Past and future disfigurement,
 - d. Past and future mental anguish,
 - e. Past and future loss of capacity for enjoyment of life,
 - f. Past and future costs of hospitalization, medical, nursing care and treatment,
 - g. Loss of earnings and wages in the past as well as loss of and/or reduction of earning capacity in the future.
159. The losses are either permanent or continuing, and Plaintiff Dillon Angulo will suffer the losses in the future.

WHEREFORE, Plaintiff Dillon Angulo demands judgment against Tesla for compensatory damages together with post-judgment interest and taxable costs incurred in this action.

WRONGFUL DEATH DAMAGES

160. Plaintiffs re-allege the foregoing as if fully set forth herein.
161. As a result of the acts or omissions of Tesla, the Estate of Naibel Benavides Leon has suffered and will suffer the following damages:
- a. Lost wages, benefits, and other earnings, including the value of lost earnings that the decedent, Naibel Benavides Leon, could reasonably have been expected to earn had she lived a full life.

- b. Loss of “prospective net accumulations” of the Estate of Naibel Benavides Leon, or the value of earning the Estate of Naibel Benavides Leon could reasonably have been expected to collect had the decedent, Naibel Benavides Leon, lived a full life.
 - c. Medical and funeral expenses paid by the Estate of Naibel Benavides Leon.
162. Lilia Marilyn Leon Jimenez, surviving natural mother and legal beneficiary under the Florida Wrongful Death Act, has in the past and will continue to suffer in the future the following damages, per the Florida Wrongful Death Act, Florida Statute §768.16:
- a. The loss of support and services Naibel Benavides Leon provided and would have provided to her mother, Lilia Marilyn Leon Jimenez.
 - b. The loss of companionship, guidance, and protection provided and which would have been provided by the decedent, Naibel Benavides Leon, to her mother, Lilia Marilyn Leon Jimenez.
 - c. Mental and emotional pain and suffering due to the loss of decedent Naibel Benavides Leon.
163. Guillermo Benavides, surviving natural father and legal beneficiary under the Florida Wrongful Death Act, has in the past and will continue to suffer in the future the following damages, per the Florida Wrongful Death Act, Florida Statute § 768.16:
- a. The loss of support and services Naibel Benavides Leon provided and would have provided to her father, Guillermo Benavides.
 - b. The loss of companionship, guidance, and protection provided and which would have been provided by the decedent, Naibel Benavides Leon, to her father, Guillermo Benavides.

- c. Mental and emotional pain and suffering due to the loss of decedent Naibel Benavides Leon.
- d. Medical and funeral expenses paid for or owed by Guillermo Benavides as a result of the death of his daughter, Naibel Benavides Leon.

WHEREFORE, Plaintiff, Neima Benavides, as Personal Representative of the Estate of Naibel Benavides Leon, demands judgment against Tesla for compensatory damages together with post-judgment interest and taxable costs incurred in this action.

PUNITIVE DAMAGES

- 164. Plaintiffs re-allege the foregoing as if fully set forth herein.
- 165. Tesla's wrongful conduct as described herein was motivated solely by unreasonable financial gain.
- 166. The unreasonably dangerous nature of Tesla's conduct, together with the high likelihood of injury resulting from the conduct, was known by the managing agent, director, officer, or other person responsible for making policy decisions on behalf of Tesla.
- 167. At the time of the collision the Autopilot system in Mr. McGee's Tesla was activated but failed to properly detect and/or effectively respond to the road conditions or the presence of the Angulo vehicle.
- 168. The Autopilot system failed to engage any braking, deceleration, or steering to prevent the fatal collision.
- 169. The Autopilot system failed to ensure McGee was attentive and failed to effectively notify him of the need to engage braking, deceleration, or steering to prevent the fatal collision.

170. After engaging in discovery, Plaintiffs have uncovered evidence demonstrating that Tesla is guilty of intentional misconduct and/or gross negligence – conduct that a reasonable jury could find warrants the imposition of punitive damages.
171. The evidence shows Tesla, through its officers, employees, and agents, knew that the vehicle at issue had an Autopilot system that was not fully tested for safety and was not designed to be used on roadways with cross-traffic or intersecting roadways. Nevertheless, Tesla programmed Autopilot to allow it to be used on roadways that Tesla knew were not suitable for its use and knew would result in fatal accidents resulting in death and/or serious injury to innocent bystanders such as Plaintiffs.
172. Despite knowing of these deficiencies, Tesla advertised Autopilot in a way that greatly overestimated its capabilities and hid its deficiencies. Tesla knew that Autopilot was unable to appropriately detect and respond to in-path stationary vehicles or crossroad situations.
173. At all times material hereto and prior to the subject crash, Defendant Tesla had specific knowledge through its officers, directors, managers and/or other employees/agents, including its CEO Elon Musk, that its product was defective and would not properly and safely avoid impacting other vehicles and obstacles in its path or effectively warn drivers of their need to intervene to avoid a collision.
174. At all times material hereto and prior to the subject crash, Defendant Tesla had specific knowledge through its officers, directors, managers, or other employees/agents, including its CEO Elon Musk, that its product was defective based on, among other things, inadequate design, testing, and manufacture of “Autopilot”.

175. At all times material hereto and prior to the subject crash, Defendant Tesla had specific knowledge through its officers, directors, managers or other employees/agents, including its CEO Elon Musk, that its product was defective based on government investigations, recommendations, and warnings provided by the National Transportation Safety Board and the National Highway Traffic Safety Administration.
176. At all times material hereto and prior to the subject crash, Defendant Tesla had specific knowledge through its officers, directors, managers or other employees/agents, including its CEO Elon Musk, that its product was defective based on numerous prior incidents and collisions in which its safety systems on Tesla vehicles partially or completely failed, causing significant property damage, severe injury and catastrophic death to its occupants.
177. At all times material hereto and prior to the subject crash, Defendant Tesla failed to correct its defective product and instead continued to mislead the public, including Mr. McGee, as to the purported capabilities and safety of the product through the public statements of the company and statements by its CEO Elon Musk, despite having the foregoing knowledge.
178. Notwithstanding the Defendant Tesla's knowledge of the inadequacy of its safety systems, CEO Elon Musk, in a cost savings measure, overrode the recommendations of his own engineers by ordering the removal of radar sensors from its newer cars and deactivating the radar sensors on cars already in possession of consumers. As a result, the Autopilot system relied solely on the vehicle's camera systems, which were inadequate to identify all obstacles in the path of the vehicle.

179. The conduct of Defendant Tesla was motivated by financial gain and by a desire to gain market share. Defendant Tesla and its CEO Elon Musk specifically made the decision to continue to profit from the sales of their defective vehicles without taking the appropriate steps to ensure the safety of its occupants and others.
180. At all times material hereto, Defendant Tesla engaged in intentional misconduct or gross negligence in the following manner:
- a. Failing to geofence the Autopilot system and allowing the Autopilot system to be used outside of Tesla's stated operational design domain (ODD) on non-controlled access roadways with cross-traffic;
 - b. Allowing the Autopilot system to be used in excess of the posted speed limit on non-controlled access roadways with crossroads and cross-traffic;
 - c. Making public statements that its Autopilot technology is far more capable than it actually is;
 - d. Relying on radar to detect stationary and broadside vehicles despite established history of crashes and concerns raised internally within Tesla;
 - e. Failing to re-train its computer vision dataset to include stationary and broadside vehicles despite Tesla's knowledge of previous deaths involving Tesla's Autopilot and stationary and broadside vehicles ;
 - f. Failing to re-train its computer vision dataset to include different lighting conditions;
 - g. Failing to re-train its computer vision dataset to include flashing lights;

- h. Allowing drivers of its vehicles, while Autopilot is engaged, to take hands off the steering wheel for 30 seconds or more despite Tesla's claiming its Autopilot system is a Level 2 system which requires drivers to be ready to take immediate action;
- i. Failing to provide adequate warnings in the owner's manual that the Autopilot system has problems detecting crossing and/or stationary vehicles;
- j. Failing to conduct adequate testing of both its radar and computer vision systems;
- k. Failing to adequately train senior Tesla engineers and employees on basic information such as ODD and the need for consideration of human factors when designing and implanting its Autopilot system;
- l. Failing to use cameras and other available technology to detect inattention of the driver;
- m. Failing to use audible and tactile technology to effectively prompt the driver to fully engage in the driving task;
- n. Failing to disengage Autopilot features after detecting unsafe driver inattention;
- o. Failing to utilize human factors expertise and/or human factors consultants in the design and creation of its warnings and user interfaces;
- p. Failing to conduct testing to determine adequate perception/reaction times of the Autopilot system;
- q. Failing to provide adequate supervision and quality assurance of subcontractors involved with the Autopilot system;
- r. Denying that misuse of its Autopilot system is a potential hazard;
- s. Failing to alert drivers while engaged in Autopilot that the Tesla vehicle is no longer in Tesla's designated ODD;

- t. Failing to keep with known standards;
- u. Failing to use reasonable care and practical engineering principles under all the relevant circumstances.

181. At all times material hereto, Defendant Tesla had actual knowledge of the wrongfulness of its conduct and the high probability that injury or damage to people such as Plaintiffs would result and, despite that knowledge, intentionally pursued the foregoing course of conduct, resulting in Naibel's death and Dillon's catastrophic injuries. In other words, the Defendant's conduct rises to the level of intentional misconduct, and an award of punitive damages is proper.
182. Alternatively, at all times material hereto, the conduct of Defendant Tesla was so reckless or wanting in care that it constituted a conscious disregard and indifference to the life, safety, or rights of people like Plaintiffs. In other words, the Defendant's conduct rises to the level of gross negligence, and an award of punitive damages is proper.
183. Again, one of the clearest demonstrations of Tesla's indifference to safety has been that, despite claims that Tesla has fully complied with NHTSA's recall, early indications are that Tesla's software updates have done little, if anything, to address the regulator's concerns.¹⁶⁸
184. Further, despite NHTSA's findings, Tesla has evidently not agreed to restrict Autopilot and Autosteer to the kind of roads on which the technology was designed to operate.¹⁶⁹ Although Tesla had been notified of the potential for foreseeable misuse of its Autopilot

¹⁶⁸ Sean O'Kane, *Consumer Reports says Tesla's Autopilot recall fix is 'insufficient'*, TECHCRUNCH, December 20, 2023, <https://techcrunch.com/2023/12/20/tesla-autopilot-recall-consumer-reports/>

¹⁶⁹ *Id.*

system years before this incident,¹⁷⁰ and despite the recent recall, Tesla steadfastly refuses to restrict operation of Autopilot and Autosteer to the areas in which this technology was designed to operate, a remedy that would further help correct the dangerously defective system.¹⁷¹

185. The wrongful conduct of Defendant Tesla was motivated solely by unreasonable financial gain, and the unreasonably dangerous nature of the conduct, together with the high likelihood of injury resulting from the conduct, was known by the managing agent, director, officer, or other persons responsible for making policy decisions on behalf of Defendant Tesla.

186. As a direct and proximate result of the intentional misconduct or gross negligence of Defendant Tesla, Plaintiffs suffered the damages set out above and are entitled to punitive damages.

WHEREFORE, Plaintiffs demand judgment for punitive damages against Defendant Tesla together with post-judgment interest and taxable costs incurred in this action.

PRAYER

WHEREFORE, Plaintiffs pray for judgment against Tesla as follows:

1. On the past and future medical expenses incurred to judgment;
2. On the loss of future earnings and earning capacity to judgment;
3. On other past and future special damages incurred to judgment;
4. On the general damages for pain and suffering to judgment.

¹⁷⁰ Rachel Lerman, Faiz Siddiqui, Aaron Gregg and Trisha Thadani, *How Tesla Autopilot got grounded*, THE WASHINGTON POST, December 16, 2023, <https://www.washingtonpost.com/business/2023/12/16/tesla-autopilot-recall-timeline/>

¹⁷¹ Faiz Siddiqui and Trisha Thadani, *Recalling almost every Tesla in America won't fix safety issues, experts say*, THE WASHINGTON POST, December 16, 2023, <https://www.washingtonpost.com/technology/2023/12/16/tesla-autopilot-recall/>

5. Costs of suit and expenses, according to proof;
6. Wrongful Death Damages as set out above;
7. Punitive Damages; and
8. Other relief the Court deems appropriate.

DEMAND FOR JURY TRIAL

Plaintiffs demand trial by jury on all issues so triable.

Dated this 11th day of March, 2024.

Respectfully submitted,

THE ROUSSO, BOUMEL LAW FIRM, PLLC.
9350 South Dixie Highway, Suite 1520
Miami, Florida 33156
(305) 670-6669

By: /s/ Adam T. Boumel, Esq.
Adam T. Boumel, Esq.
Florida Bar No.: 0110727
Adam@roussolawfirm.com
SERVICE EMAILS:
pleadings@roussolawfirm.com (primary)

POSES & POSES, P.A.
Alfred I. DuPont Building
169 East Flagler Street
Suite 1600
Miami, FL 33131
(305) 577-0200 Telephone
(305) 371-3550 Facsimile
tposes@posesandposes.com

/s/Todd Poses
TODD POSES, ESQ.
FBN: 0075922

*Counsel for Plaintiff, Neima Benavides as PR for the
Estate of Naibel Benavides Leon*

CERTIFICATE OF SERVICE

I hereby certify that on March 11, 2024, a true and correct copy of the foregoing was served via email to all counsel identified in the below service list.

/s/ Adam T. Boumel

Adam T. Boumel, Esq.

SERVICE LIST

<u>Cole, Scott & Kissane, P.A.</u> 9150 S. Dadeland Blvd, Suite 1400 Miami, Florida 33156 Attn: Henry Salas, Esq. henry.salas@csklegal.com leisy.martinez@csklegal.com <i>Counsel for Defendant, Tesla, Inc.</i>	<u>Eaton & Wolk PL</u> 2665 South Bayshore Dr., Suite 609 Miami, FL 33133 Attn: Doug Eaton, Esq. deaton@eatonwolk.com <i>Co-Counsel for both Plaintiffs.</i>
<u>Bowman and Brooke LLP</u> 41000 Woodward Ave., Suite 200E Bloomfield Hills, Michigan 48304 Attn: Thomas P. Branigan, Esq. Attn: Drew P. Branigan, Esq. thomas.branigan@bowmanandbrooke.com drew.branigan@bowmanandbrooke.com <i>Counsel for Defendant, Tesla, Inc.</i>	
<u>Aria Sanguinetti Wang & Torrijos, LLP</u> 2200 Powell Street, Suite 740 Emeryville, CA 94608 Attn: Elise R. Sanguinetti, Esq. elise@aswtlawyers.com ncservice@aswtlawyers.com <i>Co-Counsel for both Plaintiffs.</i>	
<u>Poses & Poses, P.A.</u> 169 East Flagler Street, Suite 1600 Miami, Florida 33156 Attn: Todd Poses, Esq. tposes@posesandposes.com Maria@posesandposes.com <i>Counsel for Plaintiff, Neima Benavides</i>	
<u>Slavik Law Firm, LLC</u> 3001 S. Lincoln Ave., Suite C-1 Steamboat Springs, CO 80487 Attn: Donald H. Slavik, Esq. Attn: David Terry, Esq. dslavik@slavik.us dterry@slavik.us <i>Co-Counsel for both Plaintiffs.</i>	